AMENDED AND RESTATED LIMITED LIABILITY COMPANY AGREEMENT

of

GROVE BANYAN HOLDINGS I LLC

THE INTERESTS REFERRED TO IN THIS AGREEMENT HAVE NOT BEEN REGISTERED UNDER THE SECURITIES ACT OF 1933, AS AMENDED (THE "1933 ACT"). SUCH INTERESTS ARE BEING OFFERED AND SOLD UNDER THE EXEMPTION PROVIDED BY SECTION 4(2) OF THE 1933 ACT AND/OR PURSUANT TO RULE 506 THEREUNDER AND/OR PURSUANT TO REGULATIONSUNDER THE 1933 ACT.

A PURCHASER OF ANY INTEREST MUST BE PREPARED TO BEAR THE ECONOMIC RISK OF THE INVESTMENT FOR AN INDEFINITE PERIOD OF TIME BECAUSE THE INTERESTS HAVE NOT BEEN REGISTERED UNDER THE 1933 ACT AND, THEREFORE, CANNOT BE SOLD UNLESS THEY ARE SUBSEQUENTLY REGISTERED OR AN EXEMPTION FROM REGISTRATION IS AVAILABLE. THERE IS NO OBLIGATION OF THE ISSUER TO REGISTER THE INTERESTS UNDER THE 1933 ACT.

THIS AGREEMENT PROVIDES FOR FURTHER RESTRICTIONS ON TRANSFER OF THE INTERESTS. ACCORDINGLY, PURCHASE OF THE INTERESTS IS ONLY SUITABLE FOR INVESTORS WILLING AND ABLE TO ACCEPT THE ECONOMIC RISK OF THE INVESTMENT AND LACK OF LIQUIDITY.

ARTICLE 1 - DEFINITIONS 6

ARTICLE 2 - ORGANIZATIONAL MATTERS 15

2.01 Formation 15
2.02 Names 15
2.03 Office and Principal Place of Business 15
2.04 Purposes of the Company 15
2.05 Term 16
2.06 Recapitalization, Acquisitions, Restructuring and Mergers 16

ARTICLE 3 - CAPITAL CONTRIBUTIONS 16

3.01 Initial Capital Contributions 16
3.02 Additional Capital Contributions 16
3.03 Capital Accounts 18
3.04 No Interest 18
3.05 No Withdrawal 18
3.06 Offset 19

ARTICLE 4 - MEMBERS 19

4.01 Admission of Members 19
4.02 Classes of Members 19
4.03 Limited Liability 19
4.04 Admission of Additional Members 19
4.05 Transactions with the Company 20
4.06 Actions by the Members 20
4.07 Meetings of Members 20
4.08 Pre-Emptive Rights 20
4.09 Confidential Information. 20
4.10 Additional Limitation Member Actions 21
4.11 No Withdrawal 21

ARTICLE 5 - MANAGEMENT AND CONTROL OF THE COMPANY 21

5.01 Management by Manager 21
5.02 Power and Authority of Manager 21
5.03 Selection of Manager 21
5.04 Resignation; Removal 21
5.05 Authority of Members 22
5.06 Appointment of Officers 22
5.07 Limitations on Authority 22
5.08 Limited Liability 22
5.09 Liability; Indemnification 23
5.10 Devotion of Time 24
5.11 Other Business Activities 24
5.12 Remuneration for Management or Other Services 25
5.13 Property Management. 25
5.14 Reimbursement of Expenses 25
5.15 Transactions with the Company and Portfolio Companies 25
5.16 Modification of Duties 25

ARTICLE 6 - ALLOCATIONS OF NET PROFITS AND NET LOSSES AND DISTRIBUTIONS 25

6.01 General Allocations 25
6.02 Special Allocations 26
6.03 Curative Allocations. 27
6.04 Code Section 704(c) Allocations 27
6.05 Allocations with Respect to a Transferred Interest 27
6.06 Obligations of Members to Report Consistently 28
6.07 Distributions by the Company to the Members 28
(c) Advances or Draws 29
(d) Distributees; Liability for Distributions. 29
(e) Tax Distributions. 29
(f) Form of Distributions. 30
(g) Restriction on Distributions. 30
6.08 Withholding 30
6.09 Tax-Deferred Exchange 30
6.10 Specific Authorization regarding REIT Transaction 31

ARTICLE 7 - TRANSFER OF INTERESTS 31

7.01 Transfer in General 31
7.02 Transfer to Related Parties 31
7.03 Effective Date of Transfer 32
7.04 Effect of Transfer 32
7.05 Company Repurchase Right 32
7.06 Substitution of Members 32
7.07 Mandatory Sale 33

ARTICLE 8 - BOOKS AND RECORDS; ACCOUNTING; TAX MATTERS 34

8.01 Books and Records. 34
8.02 Delivery to Members and Inspections 34
8.03 Annual Statements 34
8.04 Other Filings 35
8.05 Bank Accounts 35
8.06 Accounting and Reliance on Others 35
8.07 Tax Matters 35

ARTICLE 9 - DISSOLUTION AND WINDING UP 36

9.01 Dissolution. 36
9.02 Winding Up. 36
9.03 Distributions in Kind. 36
9.04 Determination of Fair Market Value. 37
9.05 Order of Distributions on Liquidation. 37
9.06 Limitations on Payments Made in Dissolution. 37
9.07 Certificate of Cancellation. 37
9.08 Termination. 37
9.09 No Action for Dissolution. 37

ARTICLE 10 - rEPRESENTATIONS AND WARRANTIES OF MEMBERS 38

10.01 Experience. 38

10.02 Advertising.....38
10.03 No Re-Sale.....38
10.04 Accredited Investor; No Registration.....38
10.05 No Market.....38
10.06 Own Account.....38
10.07 OFAC.....39
10.08 Investigation.....39
10.09 Due Authorization, Enforceability, Etc......39
10.10 No Property Representations.....39

ARTICLE 11 - MISCELLANEOUS 40

11.01 Amendment.....40
11.02 Complete Agreement.....40
11.03 Binding Effect.....41
11.04 Parties in Interest.....41
11.05 Pronouns; Statutory References.....41
11.06 Counterparts.....41
11.07 Interpretation; Headings.....41
11.08 References to this Agreement.....41
11.09 Governing Law.....41
11.10 Waiver.....41
11.11 Waiver of Jury Trial.....42
11.12 Severability.....42
11.13 Incorporation of Exhibits and Schedules.....42
11.14 Additional Documents and Acts.....42
11.15 Equitable Remedies.....42
11.16 Arbitration.....42
11.17 No Interest in Company Property; Waiver of Certain Rights.....44
11.18 Notices.....44
11.19 Remedies Cumulative.....45
11.20 Power of Attorney.....45

AMENDED AND RESTATED LIMITED LIABILITY COMPANY AGREEMENT

OF

GROVE BANYAN HOLDINGS I LLC

THIS AMENDED AND RESTATED LIMITED LIABILITY COMPANY AGREEMENT of GROVE BANYAN HOLDINGS I LLC, a Delaware limited liability company (the "Company"), is made as of the 28th day of July, 2021 to be effective upon the date of formation of the Company (the "Effective Date"), by and among JONATHAN WYSS, as the Manager (as defined below), and the Persons who have executed this Agreement as a Member (as defined below).

RECITALS:

WHEREAS, the Members have agreed to form the Company as a limited liability company by filing of its Certificate of Formation with the Secretary of State of the State of Delaware in accordance with the Delaware Limited Liability Company Act, as amended from time to time (6 Del. C. §§18-101 et seq.);

WHEREAS, the Company will be formed to, among other things, own equity interests in the Portfolio Companies (as defined herein) and offer Interests in the Company, which will be tracking interests entitling the holder to receive a certain percentage of income and loss allocations and cash distributions in one or more of the various Portfolio Companies as set forth in this Agreement;

WHEREAS, Grove Banyan Properties, LLC, a Florida limited liability company, intends to enter into a Limited Liability Company Agreement of the Company (the "Initial Agreement") for the purposes of, among other routine formation and administrative matters, opening a bank account for the Company;

WHEREAS, in connection with each offering of subscriptions of Interests of the Company, Members shall be admitted as Members of the Company pursuant to the terms and conditions of this Agreement and any subscription agreement to which such Member is a party, with their membership in the Company to become effective in accordance with the terms and conditions of both this Agreement and such subscription agreement to the extent applicable;

WHEREAS, the parties now desire to enter into this Agreement to (i) reflect the terms and conditions upon which the admission of Members shall occur, (ii) set forth the rights and obligations of Members, and (iii) to provide for the governance of the Company and the conduct of the business of the Company pursuant to the Act and this Agreement;

NOW, THEREFORE, in consideration of the foregoing, the mutual representations, warranties, covenants and agreements hereinafter set forth, the Members hereby amend and restate the Initial Agreement in its entirety and agree as follows:

ARTICLE 1 - DEFINITIONS

1.01 Definitions. The following terms shall have the following meanings when used in this Agreement:

"Act" means the Delaware Limited Liability Company Act, 6 Del. C. § 18-101, et seq., as the same may be amended from time to time.

"Adjusted Capital Account Deficit" means, with respect to any Member, the deficit balance, if any, in such Member's Capital Account as of the end of the relevant Fiscal Year, after giving effect to the following adjustments:

(a) Credit to such Capital Account any amounts that such Member is obligated to restore pursuant to any provision of this Agreement or is deemed to be obligated to restore pursuant to the penultimate sentences of Regulations Sections 1.704-2(g)(1) and 1.704-2(i)(5);

(b) Credit to such Capital Account the amount of the deductions and losses referable to any outstanding recourse liabilities of the Company owed to or guaranteed by such Member to the extent that no other Member bears any economic risk of loss and the amount of the deductions and losses referable to such Member's share (determined in accordance with the Member's Percentage Interest) of outstanding recourse liabilities owed by the Company to non-Members to the extent that no Member bears any economic risk of loss; and

(c) Debit to such Capital Account the items described in Regulations Sections 1.704-1(b)(2)(ii)(d)(4), 1.704-1(b)(2)(ii)(d)(5), and 1.704-1(b)(2)(ii)(d)(6).

The foregoing definition of Adjusted Capital Account Deficit is intended to comply with the provisions of Regulations Section 1.704-1(b)(2)(ii)(d) and shall be interpreted consistently therewith.

"Affiliate" of a Person means: (a) any officer, partner, director, manager, trustee, member, or controlling shareholder of such Person; (b) any Person controlling, controlled by or under common control with such Person; and (c) any officer, partner, director, manager, trustee, member, or controlling shareholder of any Person described in (b) above. For purposes of this definition, the term "control" shall mean the power to direct the management and policies of such Person, directly or indirectly, by or through stock ownership, agency or otherwise, or pursuant to or in connection with an agreement, arrangement or understanding (written or oral) with one or more other Persons by or through stock ownership, agency or otherwise; and the terms "affiliated", "controlling" and "controlled" shall have meanings correlative to the foregoing.

"Agreement" means this Amended and Restated Limited Liability Company Agreement, as originally executed and as amended and/or restated from time to time.

"Available Operating Cash" means all gross cash receipts of the Company from any source whatsoever actually received by the Company other than Available Cash From Capital Events, less the sum of the following, to the extent paid or set aside from such cash:

(a) All principal, interest and other payments due and owing with respect to loans, mortgages and other indebtedness of the Company;

(b) All cash expenditures then required to be made in connection with the operation of the business of the Company; and

(c) Such cash reserves as the Manager reasonably determine to be necessary or appropriate for the operation of the business of the Company.

"Available Cash from Capital Events" means all cash derived by the Company from the sale, disposition, cash out financing, refinancing, or condemnation of (a) a Fee Owner, (b) a Portfolio Company, (c) a Property, or (c) all or substantially all of the assets of any Portfolio Company, in each case, after payment of all Company, Portfolio Company, and Fee Owner expenses (including, but not limited to, legal fees, broker fees, accounting fees, taxes, and third party fees and expenses) associated with such transaction and such allowance for reserves, contingencies and anticipated Company, Portfolio Company, and Fee Owner expenses and other obligations as may be determined by the Manager in its sole and absolute discretion.

"Available Cash Waterfall" means, with respect to each Class of Interest, the distribution waterfall set forth on **Schedule C**, as amended from time to time in accordance with this Agreement, and designated as the "Available Cash Waterfall".

"Bankruptcy" means, with respect to any Person: (a) the filing of an application by such Person for, or such Person's consent to, the appointment of a trustee, receiver, or custodian of its assets; (b) the entry of an order for relief with respect to such Person in proceedings under the United States Bankruptcy Code, as amended or superseded from time to time; (c) the making by such Person of a general assignment for the benefit of creditors; (d) the entry of an order, judgment, or decree by any court of competent jurisdiction appointing a trustee, receiver, or custodian of the assets of such Person unless the proceedings and the trustee, receiver, or custodian appointed are dismissed within one hundred twenty (120) days; or (e) the failure by such Person generally to pay such Person's debts as the debts become due within the meaning of Section 303(h)(1) of the United States Bankruptcy Code, as determined by the Bankruptcy Court, or the admission in writing of such Person's inability to pay its debts as they become due.

"Business Day" means any day that is not a Saturday, Sunday or other legal holiday.

"Capital Account" means, with respect to each Member, the capital account that the Company establishes and maintains for such Member pursuant to Section 3.03 herein.

"Capital Contribution" means a contribution in cash or property rights to the capital of the Company (and if required by the context of this Agreement, "Capital Contribution" shall also refer to the total amount of cash and the fair market value of property rights so contributed). The Capital Contribution of each Member shall be set forth in the books and records of the Company.

"Capital Event Waterfall" means, with respect to each Class of Interest, the distribution waterfall set forth on **Schedule C**, as amended from time to time in accordance with this Agreement, and designated as the "Capital Event Waterfall".

"Certificate" means the Certificate of Formation for the Company originally filed with the Delaware Secretary of State, as amended and/or restated from time to time.

"Class" means a class of Interest owned by a Member as set forth on **Schedule B** attached hereto, as the same may be amended from time to time.

"Class A Company" means, individually and collectively as the context requires, each limited liability company designated as the Class A Company on **Schedule A**.

"Class A Available Cash" means Available Operating Cash and Available Cash from Capital Events, as applicable, that is attributable to each Class A Company, as determined by the Manager.

"Class A Interest" means a Class A Member's right to receive distributions of Class A Available Cash and be allocated Class A Net Profits and Class A Net Losses, in each case pursuant to this Agreement and the Act.

"Class A Member" means a Member holding a Class A Interest, and specifically identified as such under "Class A Member" in **Schedule B**.

"Class A Net Losses" means Net Losses that are attributable to the Class A Company, as determined by the Manager.

"Class A Net Profits" means Net Profits that are attributable to the Class A Company, as determined by the Manager.

"Class A Percentage Interest" means, with respect to each Class A Member, the proportionate Class A Interest (expressed as a percentage) as set forth opposite such Member's name on **Schedule B** attached hereto.

"Class B Available Cash" means Available Operating Cash and Available Cash from Capital Events, as applicable, that is attributable to the Class B Company, as determined by the Manager.

"Class B Company" means, individually and collectively as the context requires, each limited liability company designated as the Class B Company on **Schedule A**.

"Class B Interest" means a Class B Member's right to receive distributions of Class B Available Cash and be allocated Class B Net Profits and Class B Net Losses, in each case pursuant to this Agreement and the Act.

"Class B Member" means a Member holding a Class B Interest, and specifically identified as such under "Class B Member" in **Schedule B**.

"Class B Net Losses" means Net Losses that are attributable to each Class B Company, as determined by the Manager.

"Class B Net Profits" means Net Profits that are attributable to the Class B Company, as determined by the Manager.

"Class B Percentage Interest" means, with respect to each Class B Member, the proportionate Class B Interest (expressed as a percentage) as set forth opposite such Member's name on **Schedule B** attached hereto.

"Class C Available Cash" means Available Operating Cash and Available Cash from Capital Events, as applicable, that is attributable to the Class C Company, as determined by the Manager.

"Class C Company" means, individually and collectively as the context requires, each limited liability company designated as the Class C Company on **Schedule A**.

"Class C Interest" means a Class C Member's right to receive distributions of Class C Available Cash and be allocated Class C Net Profits and Class C Net Losses, in each case pursuant to this Agreement and the Act.

"Class C Member" means a Member holding a Class C Interest, and specifically identified as such under "Class C Member" in **Schedule B**.

"Class C Net Losses" means Net Losses that are attributable to the Class C Company, as determined by the Manager.

"Class C Net Profits" means Net Profits that are attributable to the Class C Company other than the Class C Net Profits and the Class C Net Profits, as determined by the Manager.

"Class C Percentage Interest" means, with respect to each Class C Member, the proportionate Class C Interest (expressed as a percentage) as set forth opposite such Member's name on **Schedule B** attached hereto.

"Class D Available Cash" means Available Operating Cash and Available Cash from Capital Events, as applicable, that is attributable to the Class D Company, as determined by the Manager.

"Class D Company" means, individually and collectively as the context requires, each limited liability company designated as the Class D Company on **Schedule A**.

"Class D Interest" means a Class D Member's right to receive distributions of Class D Available Cash and be allocated Class D Net Profits and Class D Net Losses, in each case pursuant to this Agreement and the Act.

"Class D Member" means a Member holding a Class D Interest, and specifically identified as such under "Class D Member" in **Schedule B**.

"Class D Net Losses" means Net Losses that are attributable to the Class D Company, as determined by the Manager.

"Class D Net Profits" means Net Profits that are attributable to the Class D Company, as determined by the Manager.

"Class D Percentage Interest" means, with respect to each Class D Member, the proportionate Class D Interest (expressed as a percentage) as set forth opposite such Member's name on **Schedule B** attached hereto.

"Class MM Available Cash" means Available Operating Cash and Available Cash from Capital Events, as applicable, that is attributable to each Portfolio Company with respect to which the Class MM Members share in distributions as set forth on Schedule C.

"Class MM Interest" means a Class MM Member's right to receive distributions of Class MM Available Cash and be allocated Class MM Net Profits and Class MM Net Losses, in each case pursuant to this Agreement and the Act.

"Class MM Member" means a Member holding a Class MM Interest, and specifically identified as such under "Class MM Member" in **Schedule B**.

"Class MM Net Losses" means Net Losses that are attributable to each Portfolio Company with respect to which the Class MM Members share in distributions as set forth on Schedule C, as determined by the Manager.

"Class MM Net Profits" means Net Profits that are attributable to each Portfolio Company with respect to which the Class MM Members share in distributions as set forth on Schedule C, as determined by the Manager.

"Class MM Percentage Interest" means, with respect to each Class MM Member, the proportionate Class MM Interest (expressed as a percentage) as set forth opposite such Member's name on **Schedule B** attached hereto.

"Code" means the Internal Revenue Code of 1986, as amended from time to time and the provisions of succeeding law.

"Company Minimum Gain" has the meaning ascribed to the term "partnership minimum gain" in Regulations Sections 1.704-2(b)(2) and (d).

"Family Group" means, with respect to any individual, (i) the spouse (current and/or former), issue and grandchildren (in each case, whether natural or adopted) of such individual, and (ii) any trust the beneficiary(ies) of which, or any corporation, limited liability company, limited partnership, or partnership the shareholder(s), member(s), or partner(s) of which, include only such individual and/or any of the individuals referred to in the foregoing clause (i).

"Fee Owner" and "Fee Owners" means, individually and collectively, as applicable, the limited liability companies identified as such on **Schedule A** attached to this Agreement, as amended from time to time by the Manager, each of which is owned by the Portfolio Company set forth opposite its name on **Schedule A** and owns the Property set forth opposite its name on **Schedule A**, as amended from time to time by the Manager.

"Fiscal Year" means the Company's Fiscal Year, which shall be the calendar year, or any portion of such period for which the Company is required to allocate Net Profits, Net Losses, or other items of Company income, gain, loss, or deduction pursuant hereto.

"Gross Asset Value" means, with respect to any Company asset, the asset's adjusted basis for federal income tax purposes, except as follows:

(a) the initial Gross Asset Value of any asset contributed by a Member to the Company shall be the fair market value of such asset on the date of the contribution as determined by the Manager;

(b) the Gross Asset Value of each Company asset shall be adjusted to equal its respective gross fair market value as of the following times: (1) the acquisition of an additional interest in the Company by any new or existing Member in exchange for more than a de minimis Capital Contribution; (2) the distribution by the Company to a Member of more than a de minimis amount of Company assets as consideration for an interest in the Company; (3) the liquidation of the Company within the meaning of Regulations Section 1.704-1(b)(2)(ii)(g); and (4) the grant of an interest in the Company (other than a de minimis interest) as consideration for the provision of services to or for the benefit of the Company; provided, however, that adjustments pursuant to clauses (1) and (2) above shall be made only if the Manager reasonably determines that such adjustments are necessary or appropriate to reflect the relative economic interests of the Members in the Company;

(c) the Gross Asset Value of any Company asset distributed to any Member shall be the fair market value of such asset on the date of distribution as determined by the Manager; and

(d) the Gross Asset Values of Company assets shall be increased (or decreased) to reflect any adjustments to the adjusted basis of such assets pursuant to Code Section 734(b) or Code Section 743(b), but only to the extent that such adjustments are taken into account in determining Capital Accounts pursuant to Regulations Section 1.704-1(b)(2)(iv)(m); provided, however, that Gross Asset Values shall not be adjusted pursuant to this clause (d) to the extent the Manager determines that an adjustment pursuant to clause (b) hereof is necessary or appropriate in connection with a transaction that would otherwise result in an adjustment pursuant to this clause (d).

If the Gross Asset Value of an asset has been determined or adjusted pursuant to clauses (a), (b), or (d) above, such Gross Asset Value shall thereafter be adjusted by the book depreciation or amortization deductions taken into account with respect to such asset for purposes of computing Net Profits and Net Losses.

"Interest" means limited liability company interests in the Company, including a share of the Net Profits and Net Losses, if any, and a right to receive distributions, if any, as provided in this Agreement. The Interests of the Company may be represented by Units.

"JAMS" means the alternative dispute resolution organization commonly known as "JAMS" with a website of www.jamsadr.com.

"Majority in Interest" means, with respect to each Class of Interest, the Members holding a majority of the Percentage Interests of such Class.

"Manager" means each Person designated as the manager of the Company in accordance with Section 5.01. As of the date hereof, the Manager is Jonathan Wyss. Each Manager is hereby designated as a "manager" within the meaning of Section 18-101(10) of the Act.

"Member" means each Person who or that (a) has been admitted to the Company as a Member in accordance with this Agreement, or is an assignee who has become a Member in accordance with Article 7, and (b) has not resigned or withdrawn as a Member. The term "Member" shall include the Class A Members, the Class B Members, the Class C Members, the Class D Members, the Class MM Members, and any other Class of Members as may be created after the Effective Date in accordance with this Agreement. A listing of the Members and their addresses, as of the date hereof, is attached as **Schedule B**.

"Member Nonrecourse Debt" has the meaning ascribed to the term "partner nonrecourse debt" in Regulations Section 1.704-2(b)(4).

"Member Nonrecourse Debt Minimum Gain" means an amount, with respect to each Member Nonrecourse Debt, equal to the Company Minimum Gain that would result if such Member Nonrecourse Debt were treated as a Nonrecourse Liability, determined in accordance with Regulations Section 1.704-2(i)(3).

"Member Nonrecourse Deductions" has the meaning ascribed to the term "partner nonrecourse deductions" in Regulations Section 1.704-2(i)(2).

"Net Profits" and "Net Losses" means, for each Fiscal Year, an amount equal to the Company's taxable income or loss for such Fiscal Year, determined in accordance with Code Section 703(a) (for this purpose, all items of income, gain, loss, or deduction required to be stated separately pursuant to Code Section 703(a)(1) shall be included in taxable income or loss), with the following adjustments (without duplication):

(a) Any income of the Company that is exempt from federal income tax and not otherwise taken into account in computing Net Profits or Net Losses pursuant to this definition shall be added to such taxable income or loss;

(b) Any expenditures of the Company described in Code Section 705(a)(2)(B) or that are treated as Code Section 705(a)(2)(B) expenditures pursuant to Regulations Section l.704-1(b)(2)(iv)(i), and not otherwise taken into account in computing Net Profits or Net Losses pursuant to this definition shall be subtracted from such taxable income or loss;

(c) In the event the book value of any Company asset is adjusted pursuant to paragraph (b), (c) or (d) of the definition of Gross Asset Value, the amount of such adjustment shall be taken into account as gain or loss from the disposition of such asset for purposes of computing Net Profits or Net Losses;

(d) Gain or loss resulting from any disposition of property with respect to which gain or loss is recognized for federal income tax purposes shall be computed by reference to the

Gross Asset Value of the property disposed of, notwithstanding that the adjusted tax basis of such property differs from its Gross Asset Value;

(e) In lieu of the depreciation, amortization, and other cost recovery deductions taken into account in computing such taxable income or loss, there shall be taken into account book depreciation, amortization, and other cost recovery deductions for such Fiscal Year, computed in accordance with Regulations Section 1.704-1(b)(2)(iv)(g); and

(e) Notwithstanding any other provision of this definition, any items that are specially allocated under Section 6.02 or Section 6.03 shall not be taken into account in computing Net Profits or Net Losses.

The foregoing definition of Net Profits and Net Losses is intended to comply with the provisions of Regulations Section 1.704-1(b) and shall be interpreted consistently therewith. In the event the Manager determines that it is prudent to modify the manner in which Net Profits and Net Losses are computed in order to comply with such Regulations, the Manager may make such modification.

"Nonrecourse Deductions" has the meaning set forth in Regulations Sections 1.704−2(b)(1) and (c).

"Nonrecourse Liability" has the meaning set forth in Regulations Section 1.704−2(b)(3).

"Percentage Interest" means, with respect to each Member, the percentage of Interest with respect to a specific Class as set forth opposite such Member's name on **Schedule B** attached hereto. Each Member has a separate Percentage Interest (if any) with respect to each Class of Interest held by such Member. In the event the Manager issues additional Interests of a Class, except as set forth in Section 3.02, the Percentage Interest of all Members of such Class shall be diluted pro rata.

"Person" means any individual, general partnership, limited partnership, limited liability company, limited liability partnership, corporation, trust, estate, real estate investment trust, association, or other entity.

"Portfolio Company" and "Portfolio Companies" means, individually and collectively, as applicable, the Class A Company, the Class B Company, the Class C Company, the Class D Company, and such additional Subsidiaries as may be formed by the Company for the purpose of acquiring additional Properties from time to time by the Manager, each of which owns an interest in the Fee Owner set forth opposite its name on **Schedule A**, as amended from time to time by the Manager.

"Preferred Annual Return" means, with respect to each Class of Interest, an amount equal to the Preferred Return Rate per annum of a Member's Unreturned Capital Contribution, which Preferred Annual Return shall (a) begin accruing on the date of the closing of the applicable Property acquisition by the applicable Portfolio Company associated with such Class of Interest, and (b) be cumulative but not compounding and calculated on a per annum basis, but adjusted for periods greater than or less than twelve months with respect to the first Company year in which a

Preferred Annual Return accrues and any portion of a Company Year in which such Member's Unreturned Capital Contribution has been reduced to zero. For the avoidance of doubt, no Preferred Annual Return shall be payable to a Member with respect to such Member's Percentage Interest in a specific Class once such Member's Unreturned Capital Contribution with respect to such Percentage Interest has been reduced to zero.

"Preferred Annual Return Deficit" means, with respect to each Class of Interest, the accrual of a liability, if any, in each prior Fiscal Year in the amount by which the distributions to a Member made with respect to such Member's Percentage Interest in a specific Class in such prior Fiscal Year of the Company were less than the amount such Member would have received in each such Fiscal Year if such Member received its full Preferred Annual Return with respect to such Member's Percentage Interest in a specific Class in each such Fiscal Year

"Preferred Return Rate" means, with respect to each Class of Interest, the rate set forth on **Schedule C** attached hereto with respect to such Class of Interest.

"Property" and "Properties" means, individually and collectively, as applicable, the real property and improvements owned directly by the Fee Owners and indirectly by the Portfolio Companies, as more particularly set forth in **Schedule A**, as amended form time to time by the Manager.

"Regulations" means the regulations currently in force from time to time as final or temporary that have been issued by the U.S. Department of the Treasury pursuant to its authority under the Code. If a word or phrase is defined in this Agreement by cross-referencing the Regulations, then to the extent the context of this Agreement and the Regulations require, the term "Member" shall be substituted in the Regulations for the term "partner", the term "Company" shall be substituted in the Regulations for the term "partnership", and other similar conforming changes shall be deemed to have been made for purposes of applying the Regulations.

"Sole discretion" means with respect to any Person's determination, act or omission, or the exercise of any option, consideration, designation, requirement, vote, consent, or election by such Person that such Person is entitled to consider only such interests and factors or no interests and factors, as the case may be, as it desires and shall have no duty or obligation to consider any other interest or factor affecting the Company, its assets, its business or any Member. The provisions of this definition, to the extent they restrict or otherwise modify the duties and liabilities, including fiduciary duties, of any Person otherwise existing at law or in equity, are agreed by the Company, the Manager, the Members and any other Person that is a party to or is otherwise bound by this Agreement, to replace such other duties and liabilities of such Person.

"Subsidiary" means any limited liability company, limited partnership, or other business entity which is wholly owned by the Company.

"Units" means units representing each Class of Interests of the Company.

"Unreturned Capital Contribution" with respect to any Member with respect to such Member's and for each Class of Interest as of any given time, means the aggregate amount of Capital Contributions made by such Member (or his or her predecessors in interest) to the Company for his or her Percentage Interest less the aggregate amount of distributions made by the

Company to such Member (or his or her predecessors in interest) under clause (iii) of the Available Cash Waterfall and under clause (iii) of the applicable Capital Event Waterfall for such Class of Interest; provided, however, that a Member's Unreturned Capital Contribution amount shall never be less than zero.

ARTICLE 2 - ORGANIZATIONAL MATTERS

2.01 Formation. The Company was formed as a limited liability company upon the filing of its Certificate with the Secretary of State of the State of Delaware in accordance with the Act. Stacy Briggs is hereby designated as an "authorized person" within the meaning of the Act and has executed, delivered and filed the Certificate with the Secretary of State of the State of Delaware. Upon filing of the Certificate with the Secretary of State of the State of Delaware, her powers as an "authorized person" ceased, and the Manager thereupon became the designated "authorized person" and shall continue as the designated "authorized person" within the meaning of the Act. The Manager or officer shall execute, deliver and file any other certificates (and any amendments and/or restatements thereof) necessary for the Company to qualify to do business in any jurisdiction in which the Company may wish to conduct business. The rights and liabilities of the Members shall hereinafter be determined pursuant to the Act and this Agreement. To the extent that the rights or obligations of any Member are different by reason of this Agreement than they would be in the absence of such provision, this Agreement shall, to the maximum extent permitted by the Act, control.

2.02 Names. The name of the Company is "Grove Banyan Holdings I LLC". The business and affairs of the Company may be conducted under that name or, upon compliance with applicable laws, any other name that the Manager may deem appropriate or advisable. Any Person designated by the Manager or authorized officer may file any fictitious name certificates and similar filings, and any amendments thereto, that may be appropriate or advisable.

2.03 Office and Principal Place of Business. The registered office and registered agent of the Company shall be as set forth in the Company's Certificate. The Company shall establish a place or places of business as determined by the Manager.

2.04 Purposes of the Company. The object and purpose of the Company is to engage in any lawful act or activity for which a limited liability company may be organized under the Act and in any and all activities necessary, convenient, desirable or incidental thereto. Notwithstanding the foregoing, the Company shall not engage in any business other than the following:

(a) acquiring membership interests, limited liability company interests, or other equity interests in Portfolio Companies;

(b) owning, managing and holding such Portfolio Company interests for investment;

(c) selling, exchanging, repositioning, managing, financing, refinancing, disposing of the Company's interest in the Portfolio Companies, and, indirectly, in the Fee Owners and the Properties and otherwise realizing the economic benefits from the Portfolio Companies, Fee Owners, and the Properties;

(d) extend bridge loans of less than twelve (12) months to Persons engaged in the ownership and operation of commercial real property, multifamily real property, and/or mobile home park communities, including Persons that are Affiliates of the Manager, provided such loans are on commercially reasonable terms to the Company;

(e) with the consent of a Majority-in Interest of the Members, engage in any other lawful business activity that may be engaged in by limited liability companies under the Act;

(f) do all things necessary, suitable, desirable or proper for the accomplishment of or in furtherance of, any of the purposes set forth herein and to do every other act or acts incidental to, or arising from, or connected with any of such purposes.

2.05 Term. The term of the Company commenced upon the filing of the Certificate with the Secretary of State, and shall continue until terminated in accordance with this Agreement.

2.06 Recapitalization, Acquisitions, Restructuring and Mergers. The Manager may cause the Company to participate in or be a party to any recapitalization, acquisition, restructuring or merger in accordance with and as allowed by the Act.

ARTICLE 3 - CAPITAL CONTRIBUTIONS

3.01 Initial Capital Contributions. Upon execution of this Agreement, each Member admitted as of the Effective Date has made a cash Capital Contribution to the Company in the amount set forth next to such Member's name on **Exhibit B** (the "Initial Capital Contributions"). Any Member purchasing Interests after the Effective Date shall make such Initial Capital Contributions as are determined by the Manager.

3.02 Additional Capital Contributions.

(a) In the event that the Manager shall determine, in his commercially reasonable discretion, that additional contributions are required from the Members of a specific Class in connection with the applicable Portfolio Company associated with such Class, the Manager shall send a contribution notice (the "Contribution Determination Notice") to each of the Members of such Class specifying: (i) the total amount of the contribution requested (the "Additional Contribution"); (ii) each Member's share of the Additional Contribution requested; (iii) the use of the requested funds; and (iv) whether the requested funds are required on an expedited basis due to emergency conditions, and if so, specifying, such emergency conditions.

(b) Within thirty (30) days (or in the event that the Contribution Determination Notice specifies that an emergency situation exists, then within three (3) Business Days) from the date of the receipt by all of the Members of a specific Class of the Contribution Determination Notice, each such Member shall contribute or cause to be contributed, as an Additional Contribution to the capital of the Company, its pro rata share (as determined by reference to the Member's Percentage Interest for such Class) of the Additional Contribution. (A Member who does so contribute shall sometimes be referred to hereinafter

as a "Contributing Member".) If any Member of a specific Class shall fail to contribute all or any portion of its pro rata share (as determined by reference to the Member's Percentage Interest for such Class) of the Additional Contribution within the applicable period of time (such Member, hereinafter a "Defaulting Member"), then the Manager shall send a second notice (a "Default Notice") to all of the Contributing Members who shall be entitled (pro rata based on Percentage Interests in the applicable Class), but not required, to either (i) loan to the Defaulting Member the amount of the Additional Contribution which the Defaulting Member failed to contribute by funding to the Company the amount of the Additional Contribution so failed to be contributed in accordance with Section 3.02(c) below, or (ii) with consent of the Manager, treat such amount as an Additional Contribution by such Contributing Member in exchange for additional Interests of the applicable Class, in which case (x) such payment shall result in an increase to the Contributing Member's Percentage Interest in the applicable Class and a decrease to the Defaulting Member's Percentage Interest in the applicable Class based on the ratio that the actual aggregate Capital Contributions to date of each Member in such Class bears to the aggregate actual Capital Contributions of all Members to date in such Class, and (y) the Company shall issue such Contributing Member(s) additional Units of Interest of the applicable Class to reflect the foregoing adjustment in the Percentage Interest of the Contributing Member(s).

(c) Any Additional Contribution so funded as a loan pursuant to this Section 3.02 (hereinafter a "Default Loan" and the Contributing Member making such Default Loan hereinafter the "Lending Member") must be funded within ten (10) days after delivery of the Default Notice and shall be deemed to be a loan to the Defaulting Member and shall bear interest at a rate equal to twelve (12%) percent per annum, but in no event to exceed the highest rate of interest then legally permissible for similar types of loans (interest due on any such Default Loan shall be payable monthly and shall be hereinafter referred to as the "Default Loan Interest Return"). Interest shall accrue on any Default Loans from the date the funds are actually received by the Company until the date that the Default Loans are repaid in full. In the event that more than one Contributing Member shall elect to make a Default Loan, then such Contributing Members shall (unless such Contributing Members otherwise mutually agree) have the right to loan such portion of the Additional Contribution not funded by the Defaulting Member as shall equal the product of (x) the Additional Contribution not funded by the Defaulting Member and (y) a fraction, the numerator of which is equal to the respective Contributing Member's Percentage Interest for such Class and the denominator of which is equal to the aggregate Percentage Interests for such Class of all Contributing Members electing to loan the funds not funded by the Defaulting Member(s).

(d) Notwithstanding anything to the contrary contained in this Agreement, at any time when any portion of a Default Loan (including accrued and unpaid Default Loan Interest Return) shall remain outstanding for a particular Class, any distributions for such Class that are otherwise payable to or on account of a Defaulting Member shall be paid to the Contributing Members from such Class who have funded the applicable Default Loan as provided for in this Agreement and shall be treated as repayments by the Defaulting Member of first interest and then principal on the Default Loan. If more than one Default Loan is outstanding, the Default Loans senior in time shall be paid in full prior to any other Default Loans.

(e) Notwithstanding anything to the contrary contained in this Agreement, no Member having a Default Loan outstanding in excess of two hundred fifty thousand dollars ($250,000) with respect to a capital call from a specific Class shall have the right to vote on or otherwise approve any matters for such Class for so long as such Default Loan balance remains outstanding.

3.03 Capital Accounts. The Company shall establish an individual Capital Account for each Member. The Company shall determine and maintain each Capital Account in accordance with Regulations Section l.704-1(b)(2)(iv) and, pursuant thereto, the following provisions shall apply:

(a) To each Member's Capital Account there shall be credited such Member's Capital Contributions, such Member's allocated share of Net Profits and any items in the nature of income or gain that are specially allocated hereunder, and the amount of any Company liabilities assumed by such Member or which are secured by any property distributed to such Member;

(b) To each Member's Capital Account there shall be debited the amount of cash and the fair market value of any property distributed to such Member pursuant to any provision of this Agreement, such Member's allocated share of Net Losses and any items in the nature of expenses or losses that are specially allocated hereunder, and the amount of any liabilities of such Member assumed by the Company or which are secured by any property contributed by such Member to the Company;

(c) In the event all or a portion of an Interest is transferred in accordance with the terms of this Agreement, the transferee shall succeed to the Capital Account of the transferor to the extent it relates to the transferred Interest; and

(d) In determining the amount of any liability for purposes of Sections 3.03(a) and 3.03(b) hereof, there shall be taken into account Code Section 752(c) and any other applicable provisions of the Code and Regulations.

(e) The foregoing provisions and the other provisions of this Agreement relating to the maintenance of Capital Accounts are intended to comply with Regulations Section 1.704-1(b), and shall be interpreted and applied in a manner consistent with such Regulations. In the event the Members determine that it is prudent to modify the manner in which the Capital Accounts, or any debits or credits thereto, are computed in order to comply with such Regulations, the Members may make such modification.

3.04 No Interest. No Member shall be entitled to receive any interest on such Member's Capital Contributions.

3.05 No Withdrawal. No Member shall have the right to withdraw such Member's Capital Contributions or to demand and receive property of the Company or any distribution in return for such Member's Capital Contributions, except as may be specifically provided in this Agreement or required by law.

3.06 Offset. The Company may offset all amounts owing to the Company by a Member against any distribution to be made to such Member.

ARTICLE 4 - MEMBERS

4.01 Admission of Members. The name, present mailing address, Class of Interest, Percentage Interest, and Initial Capital Contribution of each Member is set forth on **Schedule B** attached hereto. Each Member shall promptly provide the Company with the information required to be set forth for such Member on **Schedule B** and shall thereafter promptly notify the Company of any change to such information. The Manager may amend **Schedule B** from time to time as necessary to accurately reflect the information therein, without the consent or approval of any Member or other Person. Any reference herein to **Schedule B** shall be deemed to be a reference to **Schedule B** as in effect and as updated from time to time.

4.02 Classes of Members. The Members shall consist of the Class MM Members, the Class A Members, the Class B Members, the Class C Members, the Class D Members, and such other additional Classes as the Manager may determine from time to time. Each Member may hold an Interest with respect to more than one Class (e.g., a Class A Member may also be a Class B Member). Notwithstanding anything to the contrary contained herein or in the Act, no Member in its capacity as such shall have the right to vote and participate in the management of the Company or any Portfolio Company except as expressly set forth in this Agreement.

4.03 Limited Liability. Except as required under the Act or as expressly set forth in this Agreement, no Member shall be personally liable for any debt, obligation, or liability of the Company, whether that debt, obligation, or liability arises in contract, tort, or otherwise solely by reason of being a Member.

4.04 Admission of Additional Members. The Manager may create and issue additional Classes of Interests, sell such additional Interests, and admit additional Members of each existing or additional Class without the vote of any Member or other Person on such terms as may be determined by the Manager in his discretion. The Manager may also sell additional Interests of any existing Class without the vote of any Member or other Person on such terms as may be determined by the Manager in his discretion. In the event the Company issues additional Interests of an existing Class, except as set forth in Section 3.02, the Percentage Interest of the other Members of such Class shall be diluted pro rata. Any additional Members will be of such Class, obtain such Interests and will participate in the management, Net Profits, Net Losses, and distributions of the Company on such terms as are determined by the Manager. Notwithstanding the foregoing, no Person shall become an additional Member until such Person (i) has received approval of the Manager; (ii) has made a Capital Contribution in the form and in the amount determined by the Manager, if any, and (iii) has executed an agreement to be bound by the terms of this Agreement, as such Agreement may be modified to establish the relative rights and responsibilities of such Person, which agreement to be bound may be a counterpart signature page to this Agreement. Substitute Members may be admitted only in accordance with Article 7. The Manager shall amend **Schedule B** as necessary to reflect such additional issuances (including the Class of Interests, Percentage Interest in each such Class and Capital Contributions of any additional Member), and shall have the power to make any other amendments to this Agreement as the Manager deem necessary or advisable to create, authorize and/or issue any such Interests, provide for the relative rights, powers, preferences,

duties, liabilities and obligations thereof, or otherwise reflect or provide for such additional Interests, in each case, without the consent or approval of any other Person.

4.05 Transactions with the Company. Subject to any limitations set forth in this Agreement, and if authorized by the Manager, a Member may lend money to and transact other business with the Company. Subject to applicable law, such Member has the same rights and obligations with respect thereto as a Person who is not a Member.

4.06 Actions by the Members. The Members may perform any acts required or permitted to be taken by the Members by this Agreement by written consent.

4.07 Meetings of Members. No annual or regular meetings of Members are required. Meetings of Members may be held at such date, time, and place within or without the State of Delaware and in such manner (including without limitation by telephone conference or video conference) as the Manager may fix from time to time. Notice of the meeting shall be provided in accordance with the provisions of the Act. The Manager may cause to be prepared minutes of the meeting, which, if prepared, shall be placed in the minute books of the Company.

4.08 Pre-Emptive Rights. No Member shall have any preemptive, preferential or other right with respect to (a) making additional capital contributions to the Company, (b) the issuance or sale of Interests (of any Class) by the Company, (c) the issuance of any obligations, evidences of indebtedness or securities of the Company convertible into, exchangeable for, or accompanied by, any rights to receive, purchase or subscribe to, any Interest (of any Class), (d) the issuance of any right of, subscription to or right to receive, or any warrant or option for the purchase of, any of the foregoing, or (e) the issuance or sale of any other interests, units, or securities by the Company.

4.09 Confidential Information. As used herein, "Confidential Information" means all confidential or proprietary information about the Company, the Portfolio Companies, or any of their respective affiliates and businesses, including, without limitation, financial statements, reports, and this Agreement, and any confidential or proprietary information about the Company, the Portfolio Companies, or any of their respective businesses to which a Member is provided access. Each Member agrees to use such Confidential Information solely for purposes reasonably related to such Member's investment in the Company, and to maintain all Confidential Information in the strictest confidence and not to disclose Confidential Information to any Person other than its fiduciaries, agents, or advisors who need to know such Confidential Information in connection with such Member's investment in the Company and who are subject to obligations of confidentiality at least as restrictive with respect to disclosure and use as the provisions of this Section 4.09. Each Member also may disclose Confidential Information to the extent necessary in order to comply with any law, order, regulation, ruling, or governmental request applicable to such Member. A Member's obligation hereunder shall not apply to any Confidential Information that becomes publicly available through no fault or act of the Member or any of its fiduciaries, agents, or advisors. Notwithstanding the foregoing, Members that are institutional investors shall be entitled to share Confidential Information with existing or potential limited partners, general partners, members, managed accounts, investment advisory and management clients, and participants in its other pooled investment vehicles in connection with its fundraising, marketing, informational or reporting activities, provided that any such recipient of Confidential Information is subject to

reasonable and customary confidentiality and use restrictions and obligations with respect to such Confidential Information.

4.10 Additional Limitation Member Actions. Notwithstanding anything to the contrary in this Agreement or the Act, and for the avoidance of doubt, no Member shall have any right to vote or consent with respect to any matter regarding any Portfolio Company, Fee Owner, or Property other than the Portfolio Company and Property associated with such Member's Class of Interest.

4.11 No Withdrawal. Except as provided in Articles 7 and 9 hereof, no Member may withdraw, resign, or retire from the Company without the prior consent of all of the Members.

ARTICLE 5 - MANAGEMENT AND CONTROL OF THE COMPANY

5.01 Management by Manager. The Manager shall manage and control the Company in accordance with this Article V and the other provisions of this Agreement.

5.02 Power and Authority of Manager. The business and affairs of the Company shall be managed and all powers of the Company shall be exercised by or under the direction of the Manager. Without limiting the generality of the foregoing, (i) the Manager shall conduct, direct and exercise full control over all activities of the Company (including, but not limited to, (x) all decisions relating to subsequent Capital Contributions, (y) all decisions in on behalf of the Company with respect to the Company's interest in each of the Portfolio Companies, including with respect to the sale or financing of, and the exercise of other rights with respect to, any Fee Owner and/or any Property), and (z) any decision to form additional Portfolio Companies, acquire additional Properties, and create additional Classes of Interests in connection therewith, (ii) all management powers over the business and affairs of the Company shall be exclusively vested in the Manager, and (iii) the Manager shall have the sole power to bind or take any action on behalf of the Company, or to exercise any rights and powers (including, without limitation, the rights and powers to take actions (including with respect to amendments, modifications or waivers), give or withhold consents or approvals (including with respect to any amendment, modification or waiver) or make determinations, opinions, judgments, or other decisions) granted to the Company under this Agreement or which arise as a result of the Company’s ownership of securities or otherwise. The Manager is authorized to execute any and all documents on behalf of the Company and any of the Portfolio Companies in connection therewith, including, but not limited to, leases, purchase and sale agreements, escrow instructions, deeds of trust, promissory notes, loan agreements, guarantees, security agreements and such other documents as may be required by in connection with a sale, financing, refinancing, and/or leasing of any Property or in the furtherance of the business of the Company.

5.03 Selection of Manager. The initial Manager of the Company shall be Jonathan Wyss. The Manager shall continue to serve as a Manager until its resignation or removal. Upon any vacancy caused by any such resignation or removal, a replacement Manager shall be selected by the Members holding not less than 75% of all of the Percentage Interests of each Class voting as a single group.

5.04 Resignation; Removal.

(a) Resignation. The Manager shall have the right in its sole discretion to resign at any time upon at least sixty (60) days prior written notice to the Members. Subject to the foregoing, the resignation of the Manager shall take effect upon receipt of that notice or at such later time as shall be specified in the notice. Unless otherwise specified in the notice, the acceptance of the resignation shall not be necessary to make it effective. Any resignation shall be without prejudice to the rights, if any, of the Manager or its Affiliates under any contract with the Company; and if the Manager or an Affiliate of the Manager is also a Member, shall not affect the Manager's or such Affiliate's rights as a Member or constitute a withdrawal of a Member.

(b) Removal. The Members, upon the vote or written consent of not less than 75% of all of the Percentage Interests of each Class voting as a single group, shall have the right to remove the Manager, but only for cause. The Manager may not be removed without cause. As used herein, "cause" means any of the following: (i) the Manager's willful or intentional violation or reckless disregard of his duties to the Company; (ii) the Manager's Bankruptcy, receivership or dissolution; (iii) the Manager's conviction of a felony or misdemeanor involving moral turpitude; (iv) the Manager's willful or intentional action or omission that causes a material adverse effect to the Company or its Members; or (v) the Manager's perpetration of fraud upon the Company or the Members.

(c) Status as a Member. The removal or resignation of the Manager shall not affect the Manager's status as a Member.

5.05 Authority of Members. No Member, acting in its capacity as a Member, shall have the right, power or authority to participate in the management or control of the Company, except with respect to those matters as to which a Member is expressly entitled to vote or approve pursuant to the terms of this Agreement. Unless expressly permitted by this Agreement or authorized by the consent of the Manager, no Member, acting in its capacity as a Member, shall have the right, power or authority to act on behalf of or otherwise bind the Company or any other Member, and no Member shall hold itself out as having such right, power or authority.

5.06 Appointment of Officers. The Manager may appoint officers and delegate duties to such officers at any time and from time to time, including without limitation a president, vice president, treasurer, secretary, assistant treasurer and assistant secretary. The officers shall serve at the pleasure of the Manager who may remove an officer with or without cause, subject to the rights, if any, of an officer under any contract of employment. An officer may resign at any time, subject to the rights, if any, of the Company under any contract of employment, and in such event the Manager may appoint a successor. The officers shall exercise such powers and perform such duties as shall be determined from time to time by the Manager or as permitted or authorized in this Agreement.

5.07 Limitations on Authority. Neither the Manager nor the officers shall do any act in contravention of this Agreement, or possess Company property or assign rights in Company property other than for Company purposes.

5.08 Limited Liability. No Manager, officer, or Member of the Company shall be personally liable under any judgment of a court, or in any other manner, for any debt, obligation,

or liability of the Company, whether that debt, obligation, or liability arises in contract, tort, or otherwise, solely by reason of (i) participating in the management of the Company, (ii) being a Manager, officer and/or Member of the Company, or (iii) both (i) and (ii).

5.09 Liability; Indemnification.

(a) Liability of the Manager, Officers, and Members. To the fullest extent permitted by law, no Manager, officer or Member, or their agents or Affiliates (each, a "Covered Person"), shall be liable to the Company or to any Member or any other Person that is a party to or otherwise bound by this Agreement, for any loss, damage or claim incurred by reason of any act or omission performed or omitted by such Covered Person in good faith on behalf of the Company and in a manner reasonably believed to be within the scope of the authority conferred on such Covered Person by this Agreement, provided that a Covered Person shall be liable for any such loss, damage or claim incurred by reason of such Covered Person's gross negligence or willful misconduct. To the fullest extent permitted by applicable law, a Covered Person shall be fully protected in relying in good faith upon the records of the Company and upon such information, opinions, reports or statements presented to the Company by any Person as to matters the Covered Person reasonably believes are within such other Person's professional or expert competence and who has been selected with reasonable care by or on behalf of the Company, including information, opinions, reports or statements as to the value and amount of the assets, liabilities, or any other facts pertinent to the existence and amount of assets from which distributions to the Member might properly be paid. The provisions of this Agreement, to the extent that they eliminate or restrict the duties and liabilities of a Covered Person otherwise existing at law or in equity, are agreed by the Members to replace such other duties and liabilities of such Covered Person to the fullest extent permitted by applicable.

(b) Indemnification by the Company. To the fullest extent permitted by applicable law, a Covered Person shall be entitled to indemnification from the Company for any loss, damage or claim incurred by such Covered Person by reason of any act or omission performed or omitted by such Covered Person in good faith on behalf of the Company and in a manner reasonably believed to be within the scope of the authority conferred on such Covered Person by this Agreement, provided that, no Covered Person shall be entitled to be indemnified in respect of any loss, damage or claim incurred by such Covered Person by reason of such Covered Person's gross negligence or willful misconduct with respect to such acts or omissions; provided, however, that any indemnity under this Section 5.09 shall be provided out of and to the extent of Company assets only, no debt shall be incurred by the Company or the Members in order to provide a source of funds for any indemnity, and no Member shall have any personal liability (or any liability to make any additional Capital Contributions) on account thereof.

(c) Indemnification of Guarantors By Company. Any Member or Affiliate of a Member or the Manager ("Guarantor") executing a guaranty of the debts or obligations of the Company or any Portfolio Company or an indemnification of any obligation of the Company or any Portfolio Company (collectively, "Guaranty"), which Guaranty, to the extent required under this Article 5, has been approved by the Manager, shall be entitled to reimbursement and indemnification as follows: (a) any sums paid pursuant to any such

Guaranty (such sums a "Guaranty Advance" and the Guarantor contributing such sums a "Guarantor Contributor") which satisfy any debt or obligation of the Company or any Portfolio Company shall be reimbursed by the Company as soon as funds are available therefore, which reimbursement shall be made prior to any further distributions to Members of any Class under this Agreement.

(d) Expenses. To the extent permitted by applicable law, expenses (including reasonable legal fees) incurred by the Manager, officer or Member (or its Affiliate) in defending any claim, demand, action, suit, or proceeding shall, from time to time, be advanced by the Company prior to the final disposition of such claim, demand, action, suit, or proceeding upon receipt by the Company of an undertaking by or on behalf of the Manager, officer or Member to repay such amount if it shall be determined that the Manager, officer or Member is not entitled to be indemnified as authorized in Section 5.09(b) hereof.

(e) Insurance. The Company, at its expense, may maintain insurance to protect itself and the Manager, officer, agent, Member or Affiliate against liability, loss or expense.

(f) Survival. The foregoing provisions of this Section 5.09 shall survive any termination of this Agreement and/or the termination of a Covered Person's relationship (of whatever nature) with the Company.

5.10 Devotion of Time. No Manager or officer is obligated to devote all of his time or business efforts to the affairs of the Company, but shall devote such time, effort, and skill as he deems appropriate for the operations of the Company.

5.11 Other Business Activities. Notwithstanding anything to the contrary contained in this Agreement, any Covered Person may engage or invest in, independently or with others, any business activity of any type or description, including without limitation those that might be the same as or similar to the Company's business and that might be in direct or indirect competition with the Company. Neither the Company nor any Member shall have any right in or to such other ventures or activities or to the income or proceeds derived therefrom. Notwithstanding anything to the contrary contained in this Agreement, no Covered Person shall be obligated to present any investment opportunity or prospective economic advantage to the Company, even if the opportunity is of the character that, if presented to the Company, could be taken by the Company. Notwithstanding anything to the contrary contained in this Agreement, any Covered Person shall have the right to hold any investment opportunity or prospective economic advantage for such Covered Person's own account or to recommend such opportunity to Persons other than the Company. Each Member acknowledges that the Covered Persons might own or manage other businesses, including businesses that may compete with the Company for the time of such Covered Person. Each Member hereby waives any and all rights and claims that it may otherwise have against any Covered Person as a result of any such permitted activities. Notwithstanding anything to the contrary and for the avoidance of doubt, such permitted activities shall not be deemed willful misconduct or violation of any fiduciary duty for purposes of this Agreement, including Section 5.09.

5.12 Remuneration for Management or Other Services. No Manager, Member or officer is entitled to remuneration for providing management or other services to the Company, except with the approval of the Manager or as expressly set forth in this Agreement.

5.13 Property Management and Acquisition Fee. All Members consent, acknowledge, and agree that the Manager shall have the power and authority to authorize and consent to the Fee Owners entering into property management contracts with respect to the Properties with property management companies that are Affiliates of the Manager, provided such property management agreements shall be on commercially reasonable terms. All Members consent, acknowledge and agree that the Manager shall have the authority to cause the Company to pay an acquisition fee of up to one percent (1%) of the purchase price of each Property acquired by any Subsidiary of the Company.

5.14 Reimbursement of Expenses. The Company shall reimburse the Manager and officers for the actual cost paid or incurred by it for goods, materials, and services used by or for the Company. Except as otherwise provided herein, no Manager, Member or officer shall be reimbursed by the Company for indirect or overhead expenses, including, without limitation, rent and general office expenses.

5.15 Transactions with the Company and Portfolio Companies. No transaction between the Company or a Portfolio Company or Fee Owner, on one hand, and the Manager or any of its Affiliates, on the other hand, shall be voidable solely because such Manager or Affiliate has a direct or indirect interest in the transaction, provided that the terms and conditions of such transaction, on an overall basis, are fair and reasonable to the Company, Portfolio Company and Fee Owner, as applicable, and are at least as favorable to the Company Portfolio Company and Fee Owner, as applicable, as those that are generally available from Persons capable of similarly performing them and in similar transactions between parties operating at arm's length.

5.16 Modification of Duties. The provisions of this Agreement, to the extent that they eliminate or restrict the duties and liabilities of a Covered Person otherwise existing at law or in equity, are agreed by the Members to replace such other duties and liabilities of such Covered Person to the fullest extent permitted by applicable law.

ARTICLE 6 - ALLOCATIONS OF NET PROFITS AND NET LOSSES AND DISTRIBUTIONS

6.01 General Allocations.

(a) Subject to the special allocations set forth in Section 6.02, Net Profits and Net Losses shall be allocated among the Members in a manner such that the Capital Account balance of each Member immediately after making such allocation is, as nearly as possible, equal (proportionately) to (i) the distributions that would be made to such Member if the assets of the Company were sold for cash equal to their Gross Asset Values, all Company liabilities were satisfied (limited with respect to each nonrecourse liability to the Gross Asset Value of the assets securing such liability) and the net proceeds from such sale were distributed to the Members in accordance with Section 6.07(b), minus (ii) such

Member's share of Company Minimum Gain and Member Nonrecourse Debt Minimum Gain, computed immediately prior to the hypothetical sale of assets.

(b) For the avoidance of all doubt, allocations under this Article 6 are intended to follow as closely as possible the distributions made for each Class with respect to a Portfolio Company. Therefore and notwithstanding any other provision of this Agreement, the Manager may, in its reasonable discretion, make any modifications and adjustments to the allocations under this Section 6.01 that the Manager believes are necessary to comply with applicable law and to ensure that the allocations achieve the economic results intended hereunder.

6.02 Special Allocations.

(a) Member Nonrecourse Deductions. Any Member Nonrecourse Deductions for any Fiscal Year shall be specially allocated to the Member who bears the economic risk of loss with respect to the Member Nonrecourse Debt in accordance with Regulations Section 1.704-2(i) and Regulations Section 1.704-1(b).

(b) Nonrecourse Deductions Referable to Liabilities Owed to Non-Members. Any Nonrecourse Deductions for any Fiscal Year and any other deductions or losses for any Fiscal Year referable to a liability owed by the Company to a Person other than a Member for which no Member bears the economic risk of loss shall be specially allocated to the Members in accordance with their Percentage Interests (as determined by reference to each Class).

(c) Member Minimum Gain Chargeback. Except as otherwise provided in Regulation Section 1.704-2(i)(4), notwithstanding any other provision of this Article 6, if there is a net decrease in Member Nonrecourse Debt Minimum Gain attributable to a Member Nonrecourse Debt during any Fiscal Year, each Member who has a share of the Member Nonrecourse Debt Minimum Gain attributable to such Member Nonrecourse Debt (which share shall be determined in accordance with Regulations Section 1.704-2(i)(5)) shall be specially allocated items of Company income and gain for such Fiscal Year (and, if necessary, subsequent Fiscal Years) in an amount equal to that portion of such Member's share of the net decrease in Member Nonrecourse Debt Minimum Gain attributable to such Member Nonrecourse Debt, determined in accordance with Regulations Section 1.704-2(i)(4). Allocations pursuant to the previous sentence shall be made in proportion to the amounts required to be allocated to each Member pursuant thereto. The items to be so allocated shall be determined in accordance with Regulations Section 1.704-2(i)(4) and 1.704-2(j)(2). This Section 6.02(c) is intended to comply with the minimum gain chargeback requirement contained in Regulations Section 1.704-2(i)(4) and shall be interpreted consistently therewith.

(d) Minimum Gain Chargeback. Except as otherwise provided in Regulations Section 1.704-2(f), notwithstanding any other provision of this Article 6, if there is a net decrease in Company Minimum Gain during any Fiscal Year, each Member shall be specially allocated items of Company income and gain for such Fiscal Year (and, if necessary, subsequent Fiscal Years) in an amount equal to the portion of such Member's

share of the net decrease in Company Minimum Gain which share of such net decrease shall be determined in accordance with Regulations Section 1.704-2(g)(2). Allocations pursuant to the previous sentence shall be made in proportion to the respective amounts required to be allocated to each Member pursuant thereto. The items to be so allocated shall be determined in accordance with Regulations Section 1.704-2(f)(6) and 1.704-2(j)(2). This Section 6.02(d) is intended to comply with the minimum gain chargeback requirement contained in Regulations Section 1.704-2(f) and shall be interpreted consistently therewith.

(e) Qualified Income Offset. In the event any Member unexpectedly receives any adjustments, allocations, or distributions described in Regulations Section l.704-1(b)(2)(ii)(d)(4), (5), or (6) or any other event creates an Adjusted Capital Account Deficit, items of Company income and gain shall be specially allocated to each such Member in an amount and manner sufficient to eliminate the Adjusted Capital Account Deficit of such Member as quickly as possible, provided that an allocation pursuant to this Section 6.02(e) shall be made only if and to the extent that such Member would have an Adjusted Capital Account Deficit after all other allocations provided for in this Article 6 have been tentatively made as if this Section 6.02(e) was not in this Agreement.

6.03 Curative Allocations. The allocations set forth in Section 6.02 (the "Regulatory Allocations") are intended to comply with certain requirements of the Regulations. It is the intent of the Members that, to the extent possible, all Regulatory Allocations shall be offset either with other Regulatory Allocations or with special allocations of other items of Company income, gain, loss, or deduction pursuant to this Section 6.03. Therefore, notwithstanding any other provision of this Article 6 (other than the Regulatory Allocations), the Manager shall make such offsetting special allocations of Company income, gain, loss, or deduction in a manner determined by the Manager so that, after such offsetting allocations are made, a Member's Capital Account balance is, to the extent possible, equal to the Capital Account balance such Member would have had if the Regulatory Allocations were not part of this Agreement and all Company items were allocated pursuant to Section 6.01. In exercising its discretion under this Section 6.03, the Manager shall take into account any future Regulatory Allocations under Sections 6.02(c) and 6.02(d) that, although not yet made, are likely to offset other Regulatory Allocations previously made under Sections 6.02(a) and 6.02(b).

6.04 Code Section 704(c) Allocations. The allocations specified in this Agreement shall govern the allocation of items to the Members for Code Section 704(b) book purposes, and the allocation of items to the Members for tax purposes shall be in accordance with such book allocations, except that solely for tax purposes and notwithstanding any other provision of this Article 6: (i) Code Section 704(c) shall apply to the allocation of items of income, gain, deduction, and loss related to contributed property having an adjusted federal income tax basis at the time of contribution that differs from its initial Gross Asset Value at such time; and (ii) Regulations Section 1.704-1(b)(2)(iv)(f)(4) shall apply to the items of income, gain, deduction, and loss related to property the Gross Asset Value of which is adjusted pursuant to the definition of such term; using in the case of each of (i) and (ii) above, any permissible method under the Code and the applicable Regulations, as determined by the Manager.

6.05 Allocations with Respect to a Transferred Interest. If any Interest is transferred, or is increased or decreased by reason of the admission of a new Member or otherwise, during any

Fiscal Year of the Company, each item of income, gain, loss, deduction, or credit of the Company for such Fiscal Year shall be allocated among the Members, as determined by the Manager in accordance with any method permitted by Code Section 706(d) and the Regulations promulgated thereunder in order to take into account the Members' varying Percentage Interests during such Fiscal Year.

6.06 Obligations of Members to Report Consistently. The Members are aware of the income tax consequences of the allocations made by this Article 6 and hereby agree to be bound by the provisions of this Article 6 in reporting their shares of Company income, gain, loss and deduction for income tax purposes.

6.07 Distributions by the Company to the Members.

(a) Distributions of Available Cash. Subject to applicable law and any limitations or provisions contained elsewhere in this Agreement, including, without limitation, Section 3.02 with respect to Defaulting Members, or in any loan agreement, Available Cash shall be distributed at the election of the Manager to the Members as set forth under this Section 6.07(a).

(i) If, as determined by the Manager, the Available Cash is Class A Available Cash, then the Company shall distribute such Class A Available Cash to the holders of the Class A Interests and the holder(s) of Class MM Interests in accordance with the Available Cash Waterfall for Class A Interests set forth on **Schedule C**.

(ii) If, as determined by the Manager, the Available Cash is Class B Available Cash, then the Company shall distribute such Class B Available Cash to the holders of the Class B Interests and the holder(s) of Class MM Interests in accordance with the Available Cash Waterfall for Class B Interests set forth on **Schedule C**.

(iii) If, as determined by the Manager, the Available Cash is Class C Available Cash, then the Company shall distribute such Class C Available Cash to the holders of the Class C Interests and the holder(s) of Class MM Interests in accordance with the Available Cash Waterfall for Class C Interests set forth on **Schedule C**.

(iv) If, as determined by the Manager, the Available Cash is Class D Available Cash, then the Company shall distribute such Class D Available Cash to the holders of the Class D Interests and the holder(s) of Class MM Interests in accordance with the Available Cash Waterfall for Class D Interests set forth on **Schedule C**.

(b) Distributions of Available Cash from Capital Events. Subject to applicable law and any limitations or provisions contained elsewhere in this Agreement, including, without limitation, Section 3.02 with respect to Defaulting Members, or in any loan agreement, Available Cash from Capital Events shall be distributed at the election of the Manager to the Members as set forth under this Section 6.07(b).

(i) If, as determined by the Manager, the Available Cash from Capital Events is Class A Available Cash, then the Company shall distribute such Class A Available Cash to the holders of the Class A Interests and the holder(s) of Class MM Interests in accordance with the Capital Event Waterfall for Class A Interests set forth on **Schedule C**.

(ii) If, as determined by the Manager, the Available Cash from Capital Events is Class B Available Cash, then the Company shall distribute such Class B Available Cash to the holders of the Class B Interests and the holder(s) of Class MM Interests in accordance with the Capital Event Waterfall for Class B Interests set forth on **Schedule C**.

(iii) If, as determined by the Manager, the Available Cash from Capital Events is Class C Available Cash, then the Company shall distribute such Class C Available Cash to the holders of the Class C Interests and the holder(s) of Class MM Interests in accordance with the Capital Event Waterfall for Class C Interests set forth on **Schedule C**.

(iv) If, as determined by the Manager, the Available Cash from Capital Events is Class D Available Cash, then the Company shall distribute such Class D Available Cash to the holders of the Class D Interests and the holder(s) of Class MM Interests in accordance with the Capital Event Waterfall for Class D Interests set forth on **Schedule C**.

(c) Advances or Draws. Distributions of money and property may be treated as advances or drawings of money or property against a Member's distributive share of income and as current distributions made on the last day of the Company's taxable year with respect to such Member.

(d) Distributees; Liability for Distributions. All distributions made pursuant to this Section 6.07 shall be made only to the Persons who or that, according to the books and records of the Company, hold the Interests in respect of which such distributions are made on the actual date of distribution. Neither the Company, the Manager, any Member, nor any officer shall incur any liability for making distributions in accordance with this Section 6.07.

(e) Tax Distributions. Notwithstanding anything contained herein to the contrary, the Manager may, in his sole discretion, prior to making any distributions under this Section 6.07, advance to each Member an amount equal to (i) that portion of the Company's net taxable income allocated to such Member for a taxable period multiplied by (ii) the sum of (1) the highest federal income tax rate applicable to any Member, and (2) if applicable, the highest state and local income tax rates in effect for such taxable period (including any surtax rates) applicable to any Member, less (iii) the amount of any distributions to such Member previously made by the Company with respect to such taxable period; provided, however, that these distributions to the Members shall not exceed the Available Operating Cash. For the sake of clarification, such earlier advance to a Member shall be deemed an advance of and netted against the next distributions due to

such Member. Furthermore, the Manager shall determine the distributions, if any, to be made under this Section 6.07 on a Class-by-Class basis.

(f) Form of Distributions. In the event any proceeds available for distribution consist of items other than cash (including, but not limited to notes, mortgages and payments in kind), the Members shall be entitled to their pro rata shares of each such asset, in accordance with the aggregate amounts to which they would be entitled if such distribution were a distribution of Available Operating Cash or Available Cash from Capital Events, as applicable. The Manager can elect the form, amounts, and terms of any distribution to Members, including, without limitation, in the form of insurance annuities or other contract rights.

(g) Restriction on Distributions. Notwithstanding any provision to the contrary contained in this Agreement, the Company shall not be required to make a distribution to the Member on account of its interest in the Company if such distribution would violate the Act or any other applicable law.

6.08 Withholding. Each Member shall furnish the Company with any representations and forms reasonably requested by the Company to assist it in determining the extent of, and in fulfilling, any withholding obligations the Company may have. The Company may withhold from distributions to a Member, and pay over to a U.S. federal, state or local government, any amounts required to be withheld pursuant to the Code or any other federal, state, or local law (a "Withholding Payment"). Any Withholding Payment in respect of a Member shall nonetheless be deemed distributed to such Member for all purposes under this Agreement. If the Company makes any Withholding Payment in respect of a Member hereunder that is not immediately withheld from actual distributions to the Member, then the amount of such Withholding Payment shall offset subsequent actual distributions to such Member, or if the Withholding Payment exceeds such Member's share of future cash distributions, then such Member shall promptly reimburse the Company for the amount of the shortfall with interest at the then effective applicable federal rate within thirty (30) days from receipt of notice from the Company. Each Member hereby agrees that none of the Company, the Manager, or the partnership representative shall be liable for any excess taxes withheld in respect of such Member's Membership Interest in the Company, and that, in the event of over-withholding, a Member's sole recourse shall be to apply for a refund from the applicable governmental authority. Each Member shall indemnify and hold harmless the Company, the Manager, and the other Members from and against any liability with respect to taxes, interest, or penalties that may be asserted by reason of the Company's failure to deduct and withhold tax on amounts distributable to such Member, including, without limitation, Withholding Payments due on account of Sections 864 or 1446 of the Code (an indemnity in such case being joint and several between the transferor and transferee of a Membership Interest). The obligations under this Section 6.08 shall survive the Transfer of a Member's Interest.

6.09 Tax-Deferred Exchange. Notwithstanding anything contained in this Agreement to the contrary, upon a disposition of a Property, in lieu of distributing the Available Cash from Capital Events from such transaction, upon the consent of the Manager in its sole discretion, the Manager may cause the Company to effectuate and/or participate in one or more tax-deferred exchanges of the Property held in a Fee Owner pursuant to Section 1031 of the Code and the Regulations promulgated thereunder. Each Member holding a Percentage Interest with respect to

such Portfolio Company agrees and understands that if the Manager so elects, such Member shall not be entitled to the Available Cash from Capital Events as a result of such sale, the Portfolio Company will attempt to cause the Fee Owner to purchase one or more replacement properties (the "Replacement Property"), and such Member shall remain a member of the Company. In such event, the Manager is authorized to enter into such documents on behalf of the Company and the Portfolio Company (including purchase and sale agreements, exchange accommodation agreements, loan agreements and related transaction documents) to acquire Replacement Property. Any Available Cash from Capital Events from a Property shall then be reinvested in the Replacement Property by the Portfolio Company and Fee Owner, as applicable. The terms of this Agreement shall continue to govern the Company upon acquisition of any Replacement Property, and the Class of Interest associated with the Property sold shall thereafter be associated with the Replacement Property, and the Manager shall update the Schedules to this Agreement accordingly. Notwithstanding the foregoing, in the event that the Manager chooses to cause the Company to effectuate a tax-deferred exchange pursuant to this Section 6.09, there is no guarantee that all of the gain will be so deferred, or that there will be any tax distributions to offset any gain that may be recognized in the exchange.

6.10 Specific Authorization regarding REIT Transaction. The Manager is expressly authorized to cause the Company and/or any or all Portfolio Companies and/or any or all Fee Owners to transfer or contribute any or all of the Properties to any Person in exchange for an ownership interest in such Person, such as, for example, a tax-deferred contribution of Property or Properties to a real estate investment trust ("REIT") or to a REIT Affiliate, without the consent of the Members. The Manager is authorized to execute, deliver and perform all documents, agreements, certificates, or financing statements necessary in connection with such a transaction, all without any further act, vote or approval of any Member or any other Person notwithstanding any other provision of this Agreement. Upon the closing of such a transaction, the Company shall not be obligated to distribute any ownership interest received by the Company and/or any Portfolio Company and the Members shall remain members of the Company.

ARTICLE 7 - TRANSFER OF INTERESTS

7.01 Transfer in General. Except as expressly provided in Sections 7.02 and 7.06, no Member shall be entitled to transfer, assign, convey, sell, pledge, encumber, or in any way alienate ("Transfer") all or any part of its Interest, except with the prior written consent of the Manager, which consent may be given, withheld, conditioned, or delayed, as the Manager may determine in its sole discretion. Transfers in violation of this Section 7.01 or in violation of any other provision of this Article 7 or this Agreement shall be null and void ab initio and of no effect whatsoever.

7.02 Transfer to Related Parties. A Member may Transfer its Interest only to (i) another Member, or (ii) any member of the Member's Family Group, provided the following conditions are satisfied:

(a) The Member gives the Manager at least ten (10) days prior notice of the Transfer;

(b) the Transfer will not require registration of the Interests under any federal or state securities laws;

(c) the Transfer will not violate any loan document executed by any Portfolio Company or Fee Owner;

(d) the transferee delivers to the Company a written agreement to be bound by the terms of this Agreement and such other documents and certificates as may be requested by the Manager;

(e) the Transfer will not result in the Company being subject to the Investment Company Act of 1940, as amended; and

(f) the transferor or the transferee delivers the following information to the Manager: (a) the transferee's taxpayer identification number; and (b) the transferee's initial tax basis in the transferred Interest.

7.03 Effective Date of Transfer. Any transfer of all or any portion of an Interest in accordance with the terms of this Agreement shall be effective no earlier than the date following the date upon which the requirements of this Agreement have been met.

7.04 Effect of Transfer. After the effective date of any transfer of any part of an Interest in accordance with this Agreement, the Interest so transferred shall continue to be subject to the terms, provisions, and conditions of this Agreement and any further transfers shall be required to comply with all of the terms, provisions, and conditions of this Agreement. Any transferee of all or any portion of an Interest shall take subject to the restrictions on transfer imposed by this Agreement.

7.05 Company Repurchase Right. If a Member makes a Transfer of an Interest that violates the provisions of this Agreement, or attempts to make a Transfer of an Interest which is void as a result of the provisions of this Agreement, then the Company shall have the irrevocable right to purchase such Interest for fair market value. The Company shall have the right to exercise its repurchase right for a period of one hundred eighty (180) days following the Manager's receipt of actual notice of the applicable Transfer. For purposes of this Section 7.05, fair market value shall be determined by agreement of the Member and the Manager, or if an agreement cannot be reached within thirty (30) days of written notice from the Manager, by an independent appraisal firm selected by the Manager. Any such appraisal shall determine the fair market value of the Interest by reference to the value for the Portfolio Company associated with each Class of Interest owned by such Member (and not by reference to the Company as a whole). Any such appraisal shall determine the value of the affected Member's Interest net of any indebtedness of Portfolio Companies and Fee Owners, with all appropriate discounts including, but not limited to, discounts for lack of marketability and being a minority interest. The fair market value as determined by such appraisal shall be final and binding on the Member.

7.06 Substitution of Members. Notwithstanding anything to the contrary expressed or implied in this Agreement, a transferee of an Interest shall not have the right to become a substitute Member until each of the following is true: (a) the written consent of the Manager is obtained and the conditions of Section 7.02 have been met; (b) such Person executes an instrument satisfactory to the Manager accepting and adopting the terms, provisions, and conditions of this Agreement with respect to the acquired Interest; and (c) such Person pays any reasonable expenses in connection

with such Person's admission as a new Member. The admission of a substitute Member shall not result in the release of the Member who assigned the Interest from any liability that such Member may have to the Company. The Manager shall amend **Schedule B** as necessary to reflect the admission of any substitute Member, in each case, without the consent or approval of any other Person.

7.07 Mandatory Sale.

(a) Anything to the contrary herein notwithstanding, upon the happening of any of the following events:

(i) the Bankruptcy of a Member;

(ii) the Interest of a Member is attached or garnished, and such attachment is not discharged or vacated within ninety (90) days from the date it became effective;

(iii) any judgment is obtained in any legal or equitable proceeding against a Member, including any matrimonial action, and the sale or Transfer of all or a portion of the Member's Interest is contemplated or threatened under legal process as a result of such judgment;

(iv) any execution process is issued against a Member or against a Member's Interest;

(v) the appointment of a receiver to manage a Member's property; or

(vi) any other form of legal proceedings or processes are threatened or commenced, in which the relief sought is the sale, either voluntarily or involuntarily, of all or a portion of the Interest of a Member;

the Company is hereby granted an irrevocable, non-assignable right and option to purchase from the affected Member or his or her successor in interest, as the case may be, the Interest of the Member whose Interest is encumbered or affected by any such event(s), as though the Member whose Interest is so encumbered or affected had actually given an offer for sale of his or her Interest as of the date immediately preceding any such event(s). The Company shall exercise its option to purchase by written notice to the affected Member or his successor in interest, as the case may be.

(b) As consideration for the purchase of the Interest, the Company shall have the option to give to the selling Member, its note for the full purchase price. The principal of this note shall be payable in twenty (20) equal annual installments. Interest shall be payable annually at the rate of 4% per year. The note shall specify that in the event the Company has insufficient cash flow to make payments of principal or interest, payment shall accrue to the note holder but that failure to make timely payment shall not constitute default. The Company shall pay accrued interest and principal as soon as its cash flow allows. However, the Company shall be required to pay interest and principal which has

accrued under this note to the extent a hypothetical owner of Interest representing a capital contribution of the face amount of the note, would be entitled to receive a cash distribution of the Company profits. In the event of default on this note, the holder shall not have recourse against any Member.

(c) For the purposes of this Section 7.07, the purchase price for the Interest of any Member shall be determined by a qualified appraiser to be designated by the Manager by reference to the value for the Portfolio Company associated with each Class of Interest owned by such Member (and not to the Company as a whole). Any such appraisal shall determine the value of the affected Member's Interest net of any indebtedness of Portfolio Companies and Fee Owners, with all appropriate discounts including, but not limited to, discounts for lack of marketability and being a minority interest. The closing of the transaction shall occur within ten (10) days of the issuance of the appraisal report.

ARTICLE 8 - BOOKS AND RECORDS; ACCOUNTING; TAX MATTERS

8.01 Books and Records. The Manager shall cause the books and records of the Company to be kept, and the financial position and the results of its operations to be recorded, in accordance with the accounting methods followed for federal income tax purposes. The books and records of the Company shall reflect all the Company transactions and shall be appropriate and adequate for the Company's business. Such books, records, financial statements, and documents shall include, but not be limited to, the following: (a) a current list of the full name and last known business or residence address of each Member; (b) a current list of the full name and business or residence address of each Manager; (c) the Certificate, including all amendments; and any powers of attorney under which the Certificate or amendments were executed; (d) federal, state, and local income tax or information returns and reports, if any, for the six most recent taxable years; (e) this Agreement and any amendments thereto; (f) internal books and records for the current and three most recent years; and (g) a true copy of relevant records indicating the amount, cost, and value of all property which the Company owns, claims, possesses, or controls.

8.02 Delivery to Members and Inspections. Each Member shall have the right, upon request for purposes reasonably related to the interest of that Person as a Member, to obtain copies of the information required to be maintained by Section 8.01; provided, however, a Member may only receive copies and inspect the items described in Section 8.01(f) and (g) with respect to the Class of Interest held by such Member. Any request, inspection, or copying of information by a Member under this Section 8.02 may be made by that Person or that Person's agent or attorney. The inspecting or requesting Member shall reimburse the Company for all reasonable costs and expenses incurred by the Company in connection with such inspection and copying of the Company's books and records.

8.03 Annual Statements. The Manager shall cause to be prepared at least annually information necessary for the preparation of the Members' federal and state income tax and information returns. The Company shall send, or cause to be sent, to each Member within ninety (90) days after the end of each Fiscal Year, or as soon as practicable thereafter, such information as is necessary to complete such Member's federal and state income tax or information returns, and a copy of the Company's federal, state, and local income tax or information returns for that Fiscal Year. The Manager shall cause the income tax and information returns for the Company, if any, to

be timely filed with the appropriate authorities; provided, however, that such income tax or information returns may not be filed until the Manager approves such filing.

8.04 Other Filings. The Manager also shall cause to be prepared and timely filed, with appropriate federal and state regulatory and administrative bodies, amendments to, or restatements of, the Certificate and all reports required to be filed by the Company with those entities under the Act or other then current applicable law, rules, and regulations. The Manager may prepare, execute, and file that document with the appropriate authority.

8.05 Bank Accounts. The Manager shall maintain the funds of the Company in one or more separate bank accounts in the name of the Company, and shall not permit the funds of the Company to be commingled in any fashion with the funds of any other person.

8.06 Accounting and Reliance on Others. All decisions as to accounting matters, except as otherwise specifically set forth herein, shall be made by the Manager. The Manager may rely upon the advice of the Company's accountants as to whether such decisions are in accordance with accounting methods followed for federal income tax purposes.

8.07 Tax Matters.

(a) Taxation as Partnership. The Company shall be treated as a partnership for all tax purposes. The Company shall avail itself of any election or procedure available under the Code or the Regulations and under state and local tax law, including any "check-the-box" election, for purposes of having an entity classified as a partnership for tax purposes, and the Members shall cooperate with the Company in connection therewith and hereby authorize taking whatever actions and executing whatever documents are necessary or appropriate to effectuate the foregoing.

(b) Partnership Representative. The Class MM Member, and Jonathan Wyss as the designated person on behalf of the Class MM Member, is hereby designated as the "partnership representative" of the Company as that term is defined in Section 6223(a) of the Code (the "Representative"). The Manager may appoint a successor Representative and may amend this Agreement without consent of the Members in connection therewith. In carrying out his responsibilities, the Representative shall represent the Company at its expense in connection with any tax examination or proceeding and shall have authority to make such elections (including, but not limited to, making an election under Code Sections 754 or 6226), take such actions and enter into such agreements as the Representative deems in the best interest of the Members. The Representative shall promptly notify the Members in writing of the commencement of any tax audit of the Company, upon receipt of a tax assessment and upon receipt of a notice of final partnership adjustment, and shall keep the Members reasonably informed of the status of any tax audit and resulting administrative and judicial proceedings. Notwithstanding the foregoing, the Representative shall obtain the prior written consent of the Members holding a Majority in Interest of the Class or Classes of Interests that may be affected by the applicable audit or proceeding prior to agreeing to extend the statute of limitations, filing a request for administrative adjustment, filing suit relating to any Company tax refund or deficiency, or entering into any settlement

agreement relating to items of income, gain, loss, or deduction of the Company with any taxing authority.

(c) Each Member agrees that such Member shall not treat any Company item inconsistently on such Member's federal, state or other income tax return with the treatment of the item on the Company's return. Any deficiency for taxes imposed on any Member (including penalties, additions to tax, or interest imposed with respect to such taxes and taxes imposed pursuant to Code Section 6226) with respect to such Member's Interest shall be paid by such Member and if required to be paid (and actually paid) by the Company, then such Member shall indemnify and hold harmless the Company for such Member's allocable share of the deficiency as determined by the Representative. The provisions of this Section 8.07(c) shall survive the termination, dissolution, liquidation, and winding up of the Company, and the withdrawal of such Member or the Transfer of such Member's Interest.

(d) The Company shall defend, indemnify, and hold harmless the Representative against any and all liabilities sustained as a result of any act or decision concerning Company tax matters and within the scope of such Person's responsibilities as the Representative, so long as such act or decision was done or made in good faith and does not constitute gross negligence or willful misconduct.

ARTICLE 9 - DISSOLUTION AND WINDING UP

9.01 Dissolution. The Company shall be dissolved, its assets shall be disposed of, and its affairs shall be wound up on the first to occur of the following:

(a) The entry of a decree of judicial dissolution pursuant to Section 18-802 of the Act; or

(b) The written determination of the Manager to dissolve the Company.

9.02 Winding Up. Upon the occurrence of any event specified in Section 9.01, the Company shall continue solely for the purpose of winding up its affairs in an orderly manner, liquidating its assets, and satisfying the claims of its creditors. The Manager or, if there is no Manager remaining, a Person selected by holders of a majority of Percentage Interest for each Class (the "Liquidator") shall be responsible for overseeing the winding up and liquidation of the Company, shall take full account of the assets and liabilities of the Company, shall either cause its assets to be sold to any Person or distributed to a Member, and if sold, as promptly as is consistent with obtaining the fair market value thereof, shall cause the proceeds therefrom, to the extent sufficient therefor, to be applied and distributed as provided in Section 9.05. The Persons winding up the affairs of the Company shall give written notice of the commencement of winding up by mail to all known creditors and claimants whose addresses appear in the records of the Company. All actions and decisions required to be taken or made by such Persons under this Agreement shall be taken or made only with the consent of all such Persons.

9.03 Distributions in Kind. Any non-cash asset distributed to one or more Members shall first be valued at its fair market value to determine the gain or loss that would have been included

in the amounts allocated pursuant to Article 6 if such asset were sold for such value. Such gain or loss shall then be allocated pursuant to Article 6, and the Members' Capital Accounts shall be adjusted to reflect such allocations. The amount distributed and charged to the Capital Account of each Member receiving an interest in such distributed asset shall be the fair market value of such interest (net of any liability secured by such asset that such Member assumes or takes subject to). Notwithstanding anything to the contrary in this Agreement, no Member shall have a right to receive distributions in any form other than cash.

9.04 Determination of Fair Market Value. For purposes of Section 9.03, the fair market value of each asset of the Company shall be determined by the Manager (or, if there is no Manager, by the Liquidator) in his or its commercially reasonable discretion.

9.05 Order of Distributions on Liquidation. After determining that all known debts and liabilities of the Company in the process of winding up, including, without limitation, debts and liabilities to Members who are creditors of the Company, have been paid or adequately provided for in accordance with the Act, the remaining assets shall be distributed to the Members in accordance with Section 6.07(b). Such liquidating distributions shall be made by the end of the Fiscal Year in which the Company is liquidated, or, if later, within ninety (90) days after the date of such liquidation. Notwithstanding the foregoing, the Liquidator shall have the right, in its reasonable discretion, to retain such amount as it deems necessary as a reserve for any contingent liability or obligations of the Company, which reserves, after the passage of a reasonable period of time, shall be distributed pursuant to the provisions of this Section 9.05.

9.06 Limitations on Payments Made in Dissolution. Notwithstanding that the assets of the Company remaining after payment of or due provision for all debts, liabilities, and obligations of the Company may be insufficient to return the Capital Contributions or share of Net Profits reflected in such Member's positive Capital Account balance, a Member shall have no recourse against the Company or any other Member. In no event shall any Member be obligated to restore deficit Capital Account balances at liquidation or otherwise.

9.07 Certificate of Cancellation. A Manager, or if there is no Manager, the Liquidator, shall execute and cause to be filed in the office of, and on a form prescribed by, the Delaware Secretary of State, a certificate of cancellation of the Certificate upon the completion of the winding up of the affairs of the Company.

9.08 Termination. The Company shall terminate when all of the assets of the Company have been distributed in the manner provided for in this Article 9, and the certificate of cancellation of the Certificate is filed in accordance with Section 9.07.

9.09 No Action for Dissolution. Except as expressly permitted in this Agreement, a Member shall not take any voluntary action that directly causes the dissolution of the Company. The Members acknowledge that irreparable damage would be done to the goodwill and reputation of the Company if any Member should bring an action in court to dissolve the Company under circumstances where dissolution is not required by the provisions of this Agreement. The Members acknowledge that this Agreement provides fair treatment of all parties and equitable payment in liquidation of the Interests. Accordingly, except where the Manager has failed to liquidate the Company as required by the express provisions of this Agreement, each Member hereby waives

and renounces his or her right to initiate legal action to seek the appointment of a receiver or trustee to liquidate the Company or to seek a decree of judicial dissolution of the Company. Damages for breach of this Section 9.09 may be offset against distributions by the Company to which such Member would otherwise be entitled.

ARTICLE 10 - REPRESENTATIONS AND WARRANTIES OF MEMBERS

Each Member represents and warrants to the Company, the Manager, and the other Members as follows, which representations and warranties are in addition to any representations and warranties of such Member under the Subscription Agreement(s) executed by such Member:

10.01 Experience. By reason of his, her or its business or financial experience, such Member is capable of evaluating the risks and merits of an investment in the Company and of protecting his, her or its own interests in connection with this investment.

10.02 Advertising. Such Member has not seen, received, been presented with, or been solicited by any leaflet, public promotional meeting, newspaper or magazine article or advertisement, radio or television advertisement, or any other form of advertising or general solicitation with respect to the sale of the Interest.

10.03 No Re-Sale. Such Member is acquiring the Interest for investment purposes for his, her or its own account only and not with a view to or for sale in connection with any distribution of all or any part of the Interest. No other Person will have any direct or indirect beneficial interest in or right to the Interest.

10.04 Accredited Investor; No Registration. Such Member is an "accredited investor" within the meaning of Rule 501 of Regulation D promulgated under the Securities Act of 1933, as amended. Such Member understands that (a) an investment in the Company involves substantial and a high degree of risk, (b) no federal or state agency has ruled on the offer and sale of the Interest in the Company, (c) he, she, or it must bear the economic risk of such Member's investment in the Company for an indefinite period of time, since such Member's Interest in the Company has not been registered for sale under the Securities Act of 1933 and, therefore, cannot be sold or otherwise transferred unless subsequently registered under the Securities Act of 1933 or an exemption from such registration is available, and the Interest in the Company of such Member cannot be sold or otherwise transferred unless registered under applicable state securities or blue sky laws or an exemption from such registration is available, and such Member is capable to do so as an "accredited investor," (d) there is no established market for the Interest of such Person in the Company and no public market will develop, and (e) if such Member is not an individual, such Member's shareholders, partners, members, managers, officers, and directors, as applicable, have such knowledge and experience in real estate and other financial and business matters that they are capable of evaluating the merits and risks of an investment in the Company.

10.05 No Market. Such Member understands that there is no market for the Interests and no assurance that any such market will develop.

10.06 Own Account. Such Member is acquiring the Interests for such Member's own account and not as a fiduciary or nominee for any other person and for investment purposes only

and not with a view to or for the transfer, assignment, resale, or distribution thereof, in whole or in part. Such Member has no present plans to enter into any such contract, undertaking, agreement, or arrangement. Such Member understands the meaning and legal consequences of the foregoing representations and warranties. Such Member is not an "underwriter" of any of the Company's securities, as that term is defined in Section 2(11) of the Act, and such Member will not take or cause to be taken any action that would cause Such Member to be deemed an "underwriter" of the securities.

10.07 OFAC. Neither such Member nor, if such Member is not an individual, any of such Member's partners, members, shareholders, beneficiaries, trustees, or equity owners is a person or entity with whom U.S. persons or entities are restricted from doing business under regulations of the Office of Foreign Asset Control ("OFAC") of the Department of the Treasury (including those named on OFAC's Specially Designated and Blocked Persons List) or under any statute, executive order (including the September 24, 2001, Executive Order Blocking Property and Prohibiting Transactions with Persons Who Commit, Threaten to Commit, or Support Terrorism).

10.08 Investigation. Such Member (a) has had the opportunity to ask the Company and its Manager any and all relevant questions in connection with any aspect of the Company, and has received answers to any such questions that the undersigned considers to be satisfactory, and (b) has been advised by the Company to consult his, her or its own counsel and tax advisor with respect to the execution of this Agreement. Such Member is not relying on the Company or the Manager with respect to the tax consequences of investing in the Company.

10.09 Due Authorization, Enforceability, Etc.. To the extent such Member is not an individual, it is duly organized, validly existing and in good standing under the laws of its jurisdiction of formation with all requisite power and authority to enter into this Agreement, and action on the part of such Member necessary for the authorization, execution and delivery of this Agreement, and the consummation of the transactions contemplated hereby, have been duly taken. This Agreement constitutes the legal, valid and binding obligation of such Member enforceable in accordance with its terms. No consents or approvals are required from any governmental authority or other person or entity for such Member to enter into this Agreement. The execution and delivery of this Agreement by such Member, and the consummation of the transactions contemplated hereby, does not conflict with or contravene the provisions of its organizational documents (to the extent such Member is an entity) or any agreement or instrument by which it or its properties are bound or any law, rule, regulation, order or decree to which it or its properties are subject.

10.10 No Property Representations. Such Member hereby acknowledges that such Member is not relying on any information provided by the Manager or any of its partners, managers, affiliates (other than as may be expressly set forth in the Agreement), directors, employees, agents or officers with respect to the condition of the Properties. Without limiting the foregoing, each Member hereby acknowledges that he, she or it is not relying upon any statements, representations or warranties whatsoever, made by the Manager relating to the financial performance, condition, operations, dimensions, descriptions, soil condition, suitability, compliance or lack of compliance with any state, federal, county or local law, ordinance, order, permit or regulation, or any other attribute or matter of or relating to the Properties, including without limitation: (a) the structural integrity of any Property; (b) the conformity of any Property to any plans or specifications for the Property; (c) the conformity of any Property to past, current or future applicable zoning or building

code requirements; (d) the existence of soil instability, past soil repairs, soil additions or conditions of soil fill, or susceptibility to landslides; (e) the financial or economic performance, targets, projections, pro-formas whether or not created by the Manager; (f) the sufficiency of any drainage; (g) whether any Property is located wholly or partially in a flood plain or a flood hazard boundary or similar area; (h) the existence or non-existence of toxic or hazardous wastes or materials or friable asbestos or asbestos containing construction materials in on or about any Property; (i) any other matter affecting the stability or integrity of the land, or any buildings or improvements situated, or to be situated, on or as part of any Property; (j) the fitness or suitability of any Property for any intended uses; (k) the potential further development of any Property; and (l) the existence of vested land use, zoning or building entitlements.

ARTICLE 11 - MISCELLANEOUS

11.01 Amendment. This Agreement may be amended only upon the written consent of the Manager with the vote or written consent of a Majority In Interest of the Class or Classes affected by such amendment; provided, however, that:

(a) Except with regard to amendments otherwise specifically required under this Agreement, there shall be no amendment to this Agreement which (a) increases a Member's obligation to make Capital Contributions to the Company, or (b) imposes personal liability upon a Member for any debts or obligations of the Company unless, in each case, the amendment is consented to by such Member;

(b) The Manager, acting alone, may without the consent of or prior notice to any Member, may amend any provision of this Agreement (i) to elect for the Company to be bound by any successor statute governing limited liability companies and to elect for the Company to be reorganized as a limited liability company governed by and under the laws of a jurisdiction other than the State of Delaware, (ii) to conform this Agreement to changes in the Act, the Code, or other applicable law or interpretations thereof which the Manager believes appropriate, necessary, or desirable, provided that such amendment does not have a material adverse effect upon the Members or the Company, (iii) to reflect the exercise of any power granted to the Manager under this Agreement, (iv) to make any change that, in the sole discretion of the Manager, is advisable to qualify or to continue the qualification of the Company as a limited liability company under the laws of any state or that is necessary or advisable, in the sole discretion of the Manager, to ensure that the Company will not be treated as an association taxable as a corporation for federal income tax purposes, (v) to amend this Agreement and the Schedules hereto with respect to any Transfers, creation of additional Classes, admission of additional Members, or other changes in accordance with this Agreement; (vi) to change the name of the Company, (vii) to cure any ambiguity or correct or supplement any provisions herein contained which may be incomplete or inconsistent with any other provision herein contained; (vii) to correct any typographical errors contained herein, or (viii) in any other manner which any express provision of this Agreement permits the Manager, acting alone, to amend this Agreement.

11.02 Complete Agreement. This Agreement (including any schedules or exhibits hereto) and the Certificate constitute the complete and exclusive statement of agreement among the Members with respect to the subject matter herein and therein and replace and supersede all prior

written and oral agreements or statements by and among the Members or any of them, including, but not limited to the Initial Agreement. To the extent that any provision of the Certificate conflicts with any provision of this Agreement, the Certificate shall control.

11.03 Binding Effect. Subject to the provisions of this Agreement relating to transferability, this Agreement shall be binding upon and inure to the benefit of the Members, and their respective successors and assigns.

11.04 Parties in Interest. Except as expressly provided in the Act, nothing in this Agreement shall confer any rights or remedies under or by reason of this Agreement on any Persons other than the Members, the Manager, the Covered Persons, or their respective successors and assigns, nor shall anything in this Agreement relieve or discharge the obligations or liability of any third person to any party to this Agreement, nor shall any provision give any third person any right of subrogation or action over or against any party to this Agreement.

11.05 Pronouns; Statutory References. All pronouns and all variations thereof shall be deemed to refer to the masculine, feminine, or neuter, singular or plural, as the context in which they are used may require. Any reference to the Code, the Regulations, the Act, or other statutes or laws shall include all amendments, modifications, or replacements of the specific sections and provisions concerned.

11.06 Counterparts. This Agreement may be executed and delivered by facsimile or other electronic signature and/or in two or more counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument. Counterparts may be executed and/or delivered via facsimile, email (including PDF or any electronic signature complying with the U.S. federal ESIGN Act of 2000, *e.g.*, www.docusign.com) or other transmission method, and any counterpart so delivered will be deemed to have been duly and validly delivered and be valid and effective for all purposes.

11.07 Interpretation; Headings. This Agreement shall be construed without regard to any presumption or rule requiring construction or interpretation against the party drafting an instrument or causing any instrument to be drafted. The section headings contained in this Agreement are inserted for convenience only and shall not affect in any way the meaning or interpretation of this Agreement.

11.08 References to this Agreement. Numbered or lettered articles, sections, and subsections herein contained refer to articles, sections, and subsections of this Agreement unless otherwise expressly stated.

11.09 Governing Law. This Agreement shall be governed by and construed in accordance with the domestic laws of the State of Delaware without giving effect to any choice or conflict of law provision or rule (whether of the State of Delaware or any other jurisdiction) that would cause the application of the laws of any jurisdiction other than the State of Delaware.

11.10 Waiver. No failure by any party to insist upon the strict performance of any covenant, duty, agreement or condition of this Agreement or to exercise any right or remedy consequent upon a breach thereof shall constitute a waiver of any such breach or any other covenant, duty, agreement or condition.

11.11 Waiver of Jury Trial. WITH RESPECT TO ANY DISPUTE ARISING UNDER OR IN CONNECTION WITH THIS AGREEMENT OR ANY RELATED AGREEMENT, AS TO WHICH LEGAL ACTION OCCURS, EACH MEMBER HEREBY IRREVOCABLY WAIVES ALL RIGHTS SUCH MEMBER MAY HAVE TO DEMAND A JURY TRIAL. THIS WAIVER IS KNOWINGLY, INTENTIONALLY, AND VOLUNTARILY MADE BY THE MEMBERS AND EACH MEMBER ACKNOWLEDGES THAT NONE OF THE OTHER MEMBERS NOR ANY PERSON ACTING ON BEHALF OF THE OTHER PARTIES HAS MADE ANY REPRESENTATION OF FACT TO INDUCE THIS WAIVER OF TRIAL BY JURY OR IN ANY WAY TO MODIFY OR NULLIFY ITS EFFECT. EACH MEMBER FURTHER ACKNOWLEDGES THAT SUCH MEMBER HAS BEEN REPRESENTED (OR HAS HAD THE OPPORTUNITY TO BE REPRESENTED) IN THE SIGNING OF THIS AGREEMENT AND IN THE MAKING OF THIS WAIVER BY INDEPENDENT LEGAL COUNSEL, SELECTED OF SUCH MEMBER'S OWN FREE WILL, AND THAT SUCH MEMBER HAS HAD THE OPPORTUNITY TO DISCUSS THIS WAIVER WITH COUNSEL. EACH MEMBER FURTHER ACKNOWLEDGES THAT SUCH MEMBER HAS READ AND UNDERSTANDS THE MEANING AND RAMIFICATIONS OF THIS WAIVER PROVISION.

11.12 Severability. Any term or provision of this Agreement that is invalid or unenforceable in any situation in any jurisdiction shall not affect the validity or enforceability of the remaining terms and provisions hereof or the validity or enforceability of the offending term or provision in any other situation or in any other jurisdiction.

11.13 Incorporation of Exhibits and Schedules. The Schedules identified in this Agreement are incorporated herein by reference and made a part hereof.

11.14 Additional Documents and Acts. Each Member agrees to execute and deliver, from time to time, such additional documents and instruments and to perform such additional acts as may be necessary or appropriate to effectuate, carry out, and perform all of the terms, provisions, and conditions of this Agreement and the transactions contemplated hereby.

11.15 Equitable Remedies. Each Member acknowledges and agrees that the Company would be damaged irreparably in the event any of the provisions of this Agreement are not performed in accordance with their specific terms or otherwise are breached. Accordingly, each Member agrees that the Company shall be entitled to an injunction or injunctions to prevent breaches of the provisions of this Agreement and to enforce specifically this Agreement and the terms and provisions hereof in any action instituted in any court of the United States or any state thereof having jurisdiction over the parties and the matter (subject to the provisions set forth in Section 11.16 below), in addition to any other remedy to which it may be entitled, at law or in equity.

11.16 Arbitration.

(a) Any controversy, claim or dispute arising out of or relating to any provision of this Agreement or the arbitrability of any such controversy, claim or dispute (collectively, a "Dispute") as to which a Party otherwise would have the right to pursue litigation will be resolved as provided for in this Section 11.16 which shall be the sole and

exclusive procedures for the resolution of any dispute except as otherwise specifically provided in this Agreement.

(b) This Section 11.16 shall survive termination of this Agreement. The parties intend that the provisions hereunder shall encompass any other statutory and common law rights, obligation or duties, whether or not specifically referred to herein, of a similar or dissimilar nature, which are or may be granted to any party hereto, by the laws of any state or country in which any party resides.

(c) If any party has a Dispute with any other party, then the parties shall meet in good faith to resolve such Dispute. If the parties are unable to resolve such Dispute within thirty (30) days, such Dispute will be settled by binding arbitration under the procedures set forth in this Section 11.16.

(d) Any party may commence arbitration by written notice to the other party in the Dispute. Thereafter, arbitration shall be conducted in the manner described in subsections (e)-(f) below.

(e) Arbitration shall be the exclusive remedy for any Dispute. Any party may apply to the Exclusive Venue (as defined in subsection (g) below) for injunctive, specific enforcement or other relief in aid of the arbitration proceedings or to enforce judgment of the award in such arbitration proceeding, but not otherwise. Any award issued by the arbitrators as pursuant to these provisions may be entered and enforced in the Exclusive Venue and any other appropriate jurisdiction.

(f) Arbitration proceedings shall be conducted as follows:

(i) Within ten (10) days after a notice has been given pursuant to Section 11.18, the parties shall attempt to designate a mutually agreed upon arbitrator. If the parties are unable to agree on an arbitrator, then either party may apply to JAMS for designation of the arbitrator.

(ii) Except as set forth herein, the arbitrator shall apply the JAMS Streamlined Arbitration Rules (the "Rules") for the conduct of the arbitration. All proceedings conducted shall be deemed private and confidential and neither the fact that such proceedings are taking place nor the content of such proceeding, nor any settlement or award thereunder shall be disclosed, unless required by legal process, to the public or any third person or entity (other than the other parties) by the arbitrator or the parties to the arbitration. The parties agree that it would be in the best mutual joint interest of the parties that the arbitration proceedings and hearings shall be held in Miami, FL (unless otherwise agreed by the parties or decided by the arbitrator). The rules of civil procedure and evidence normally applicable in judicial proceedings shall not apply.

(iii) The arbitrator shall conduct the arbitration as expeditiously as possible and issue a decision not later than one hundred twenty (120) days after the arbitrator has been designated.

(iv) The arbitrator shall render such award as is proper under the evidence applying the applicable substantive law of Delaware notwithstanding that a party to a Dispute may be a resident of another state or country or that the arbitration is taking place in Miami, FL or elsewhere. The parties acknowledge that they are entitled to apply for and receive equitable relief from the arbitrator including, without limitation, injunctions and orders of specific performance. No remedy awarded by the arbitrator is exclusive of any other remedy. The arbitrator shall issue a brief written opinion containing a statement of the grounds for the award and the method of determining any damages awarded. The award of the arbitrator shall be final and binding on all parties and may be entered as a judgment, under seal, and enforced in the appropriate jurisdiction. The fees and expenses of the arbitrator shall be shared by the parties. Each party shall bear such party's own costs of the arbitration, unless otherwise determined by the arbitrator.

(g) If any court or tribunal of competent jurisdiction shall refuse to enforce this Section 11.16 or determine that a matter is not a Dispute, then, and only then, shall these alternative provisions of this Section 11.16(g) be applicable. The parties agree that it would be in the best mutual joint interest of the parties that, in such event, venue for litigation shall be held exclusively in the state and federal courts located in the State of Delaware (the "Exclusive Venue"). The parties agree not to institute any litigation except in the Exclusive Venue and further agree that specific enforcement of this covenant with respect to Exclusive Venue may be awarded to the parties by means of all available legal or equitable remedies, including, without limitation, a temporary restraining order. The parties hereby submit to the personal jurisdiction of the Exclusive Venue, waive any defense of inconvenient forum to the maintenance of any action or proceeding to be brought, and waive any requirement for setting or posting bond for a temporary restraining order. Any party may make service on any other party by sending or delivering a copy of the process to the party to be served at the address and in the manner provided for the giving of notices in Section 11.18. Nothing in this Section 11.16 shall affect the right of any party to serve legal process in any other manner permitted by law or at equity. The parties hereby waive any right they may have to a jury trial in any litigation brought in accordance with this Agreement. Each party agrees that a final judgment in any action or proceeding so brought shall be conclusive and may be enforced by suit on the judgment or in any other manner provided by law or at equity.

11.17 No Interest in Company Property; Waiver of Certain Rights. No Member has any interest in specific property of the Company. Without limiting the foregoing, each Member irrevocably waives during the existence of the Company: (i) any right that it may have to maintain any action for partition with respect to the property of the Company, (ii) any right that it may have to maintain any action for, or cause, the division of the Company; and (iii) any right to have its Interest in the Company appraised and paid out under the circumstances provided in Section 18-210 of the Act, or under any other circumstances.

11.18 Notices. Except as set forth to the contrary in this Agreement, any notice, demand, consent, election, offer, approval, request, or other communication (collectively a "notice") required or permitted under this Agreement must be in writing and either delivered personally, sent by courier or sent by certified mail, postage prepaid, return receipt requested. A notice must be

addressed to a Member at the Member's last known address on the records of the Company. A notice to the Manager or the Company must be addressed to the Company's principal office located at: 3191 Grand Avenue, #331774, Miami, FL 33133, Attn.: Jonathan Wyss. All notices may additionally be sent by e-mail; provided, that no notice shall be deemed to have been given by email without automatic confirmation of receipt from the recipient's email system. A notice sent by courier will be deemed to be given on the date on which the courier confirms that the notice was delivered to and signed for at the recipient's address. A notice sent by mail will be deemed given three (3) business days after it is mailed. A notice sent by email will be deemed received on the date if delivery or, if sent on a non-business day (according to the recipient's business calendar) on the next business day. Any party may designate, by notice to all of the others, substitute addresses or addressees for notices; and, thereafter, notices are to be directed to those substitute addresses or addressees. It is the responsibility of each Member to notify the Company and the Manager of any change to such Member's mailing address and e-mail address by written notice in accordance with this Section 11.18.

11.19 Remedies Cumulative. The rights and remedies of the Company, the Members, and the Manager contained herein are cumulative and not alternative.

11.20 Power of Attorney.

(a) Each Member hereby irrevocably constitutes and appoints the Manager as its true and lawful attorney and agent, in its name, place and stead to make, execute, acknowledge and, if necessary, to file and record:

(i) Any certificates or other instruments or amendments thereof which the Company may be required to file under the Act or pursuant to the requirements of any governmental authority having jurisdiction over the Company or which the Manager shall deem it advisable to file, including, without limitation, this Agreement, any amended Agreement and a notice of dissolution as provided in this Agreement;

(ii) Any certificates or other instruments (including counterparts of this Agreement with such changes as may be required by the law of other jurisdictions) and all amendments thereto which the Manager deems appropriate or necessary to qualify, or continue the qualification of, the Company as a limited liability company and to preserve the limited liability status of the Company in the jurisdictions in which the Company may acquire investments;

(iii) Any certificates or other instruments which may be required in order to effectuate any change in the membership of the Company or to effectuate the dissolution and termination of the Company pursuant to this Agreement; and

(iv) Any amendments to any certificate or to this Agreement necessary to reflect any other changes made pursuant to the exercise of the powers of attorney contained in this section or pursuant to this Agreement.

(b) Each Member's power of attorney granted under this Section 11.20 shall be irrevocable and further, shall be deemed to be "coupled with an interest." A copy of each

document executed by the Manager pursuant to the powers of attorney granted in this Section 11.20 shall be transmitted to each Member promptly after the date of execution of such document.

(c) The powers of attorney granted herein shall survive Transfer of all or any portion of an Interest by any Member, provided that if such Transfer was of all of such Member's Interest and the substitution of the assignee as a Member has been consented to by the Manager, the foregoing powers of attorney shall survive the delivery of such Transfer for the purpose of enabling the Manager to execute, acknowledge and file any and all certificates and other instruments necessary to effectuate the substitution of the assignee as a substitute Member. Such powers of attorney shall survive the death, dissolution or termination of a Member and shall extend to such Member's successors and assigns.

(d) Except as expressly set forth in Section 11.01, the powers of attorney granted under this Section 11.20 cannot be utilized by the Manager for the purpose of increasing or extending any financial obligation or liability of a Member or altering the method of division of profits and losses or the method of distributions in connection with the investment of a Member without the written consent of such Member.

[Signature Page Follows.]

DocuSign Envelope ID: 24C09B96-A089-4B6F-95D3-48BD0EEBC8A7

IN WITNESS WHEREOF, the undersigned hereto have executed this Agreement on as of the date first above written.

COMPANY: **GROVE BANYAN HOLDINGS I LLC**

By: _____
Name: Jonathan Wyss
Title: Manager

MANAGER:

_____
Name: Jonathan Wyss

MEMBERS: **GROVE BANYAN PROPERTIES, LLC**

By: _____
Jonathan Wyss, Manager

SINGH CAPITAL 2 LLC

By: _____
Name: Harpreet S. Rai
Title: Authorized Signatory

[*Signature page to Amended and Restated Limited Liability Company Agreement of Grove Banyan Holdings I LLC*]

DocuSign Envelope ID: 8CD3E5CE-EC49-4700-9D2B-87DDC6A15408

IN WITNESS WHEREOF, the undersigned hereto have executed this Agreement on as of the date first above written.

COMPANY: **GROVE BANYAN HOLDINGS I LLC**

By: _____
Name: Jonathan Wyss
Title: Manager

MANAGER:

_____
Name: Jonathan Wyss

MEMBERS: **GROVE BANYAN PROPERTIES, LLC**

By: _____
Jonathan Wyss, Manager

SINGH CAPITAL 2 LLC

By: Harpreet S. Rai
_____
Name: Harpreet S. Rai
Title: Authorized Signatory

[*Signature page to Amended and Restated Limited Liability Company Agreement of Grove Banyan Holdings I LLC*]

DocuSign Envelope ID: 9D58C38D-7D8A-4A15-AD05-066D3652D69A

JOINDER TO THE
AMENDED AND RESTATED LIMITED LIABILITY COMPANY AGREEMENT
OF GROVE BANYAN HOLDINGS I LLC

IN WITNESS WHEREOF, the undersigned hereby agrees to become a party to and bound by all of the terms and conditions of the Amended and Restated Limited Liability Company Agreement of Grove Banyan Holdings I LLC as a Member.

Executed as of __April 20_____, 2022.

Please sign and print name below in the exact manner in which the Member would like the Member's name to appear on the membership records of Grove Banyan Holdings I LLC:

Terrence Lee
[*Print Name*]

By: 
[*Signature*]

Its: N/A
[*Title*]

Address: 2523 Oceanview Avenue
Delray Beach, FL 33444

Email:__Terrence.lee@gmail.com_____
Phone: 646-512-2928_____

[*Member Signature page to Amended and Restated Limited Liability Company Agreement of Grove Banyan Holdings I LLC*]

SCHEDULE A

PORTFOLIO COMPANIES, FEE OWNERS, AND PROPERTIES

CLASS	PORFOLIO COMPANY	FEE OWNER	PROPERTY ADDRESS
Class A Company	Bay Oaks Village I Holdings LLC	Bay Oaks Village I, LLC	Bay Oaks Village Mobile Home Park 420 North Kimbrel Avenue Panama City, FL (Phase I)
Class A Company	Bay Oaks Village II Holdings LLC	Bay Oaks Village II, LLC	Bay Oaks Village Mobile Home Park 420 North Kimbrel Avenue Panama City, FL (Phase II)
Class A Company	Lake Wales Holdings LLC	Lake Wales MHC, LLC	Lake Wales Mobile Home Park 705 North Scenic Highway Lakes Wales, FL
Class A Company	Town and Country MHC I LLC	Town and Country MHC I LLC	Town and Country Mobile Home Park 7835 Morse Avenue Jacksonville, FL
Class A Company	Westwood MHC Holdings LLC	Westwood Manufactured Housing Community, LLC	Westwood Mobile Home Park 1804 Nelson Avenue Ormond Beach, FL
Class A Company	Wolf Bay Holdings LLC	Wolf Bay MHC, LLC	Wolf Bay Mobile Home Park 9741 Wilson Road Elberta, AL
Class B Company	Parakeet MA Portfolio, LLC	American MHC, LLC	751 Washington Street, Auburn, Massachusetts 01501
Class B Company	Parakeet MA Portfolio, LLC	Monson MHC, LLC	268 Palmer Road, Monson, Massachusetts 01057
Class B Company	Parakeet MA Portfolio, LLC	Whispering Pines MHC MA, LLC	47 Washington Street, Auburn, Massachusetts 01501
Class C Company		[To be determined.]	[To be determined.]
Class D Company		[To be determined.]	[To be determined.]

SCHEDULE B

SCHEDULE OF MEMBERS

Class MM Members:

Member Name and Address	Class MM Units	Class MM Percentage Interest	Initial Capital Contribution
Grove Banyan Properties, LLC 3191 Grand Avenue #331774 Miami, FL 33133 Attn.: Jonathan Wyss	1,000	100%	As set forth on Company books.

Class A Members:

Member Name and Address	Class A Units	Class A Percentage Interest	Initial Capital Contribution
Singh Capital 2 LLC 1902 Avenue Mcleary San Juan Puerto Rico 00911 Hsrai14@gmail.com Attn: Harpreet S. Rai	3,500,000	100%	$3,500,000

Class B Members:

Member Name and Address	Class A Units	Class A Percentage Interest	Initial Capital Contribution
Singh Capital 2 LLC 1902 Avenue Mcleary San Juan Puerto Rico 00911 Hsrai14@gmail.com Attn: Harpreet S. Rai	2,000,000	57.14%	$2,000,000
Terrence Lee 2523 Oceanview Avenue Delray Beach, FL 33444 Terrence.lee@gmail.com	1,500,000	42.86%	$1,500,000

SCHEDULE C

CLASS PREFERRED RETURNS AND DISTRIBUTION WATERFALLS

CLASS OF INTEREST	PREFERRED RETURN RATE	AVAILABLE CASH WATERFALL	CAPITAL EVENT WATERFALL
Class A Interest	Six Percent (6%)	(i) First, to the Class A Members, pro rata based on their respective Percentage Interests, in an amount up to each Class A Member's Preferred Annual Return Deficit; (ii) Second, to the Class A Members pro rata based on their respective Percentage Interests, in an amount up to each Class A Member's accrued Preferred Annual Return as of the distribution date, but only for that portion of the applicable Fiscal Year that such Member's Unreturned Capital Contribution is greater than zero; (iii) Thereafter, seventy percent (70%) to the Class A Members, pro rata based on their respective Percentage Interests, and thirty percent (30%) to the Class MM Members, pro rata based on their respective Percentage Interests, on an equal priority basis.	(i) First, to the Class A Members, pro rata based on their respective Percentage Interests, in an amount up to each Class A Member's Preferred Annual Return Deficit; (ii) Second, to the Class A Members, pro rata based on their respective Percentage Interests, in an amount up to each Class A Member's accrued Preferred Annual Return as of the distribution date, but only for that portion of the applicable Fiscal Year that such Member's Unreturned Capital Contribution is greater than zero; (iii) Third, to each Class A Member, pro rata based on their respective Percentage Interests, in an amount equal to any remaining Unreturned Capital Contribution due to each Class A Member; (iv) Fourth, seventy percent (70%) to the Class A Members pro rata based on their respective Percentage Interests, and thirty percent (30%) to the Class MM Members, pro rata based on their respective Percentage Interests, on an equal priority basis.
Class B Interest	Six Percent (6%)	(i) First, to the Class B Members, pro rata based on their respective Percentage Interests, in an amount up to each Class B Member's Preferred Annual Return Deficit; (ii) Second, to the Class B Members pro rata based on their respective Percentage Interests, in an amount up to	(i) First, to the Class B Members, pro rata based on their respective Percentage Interests, in an amount up to each Class B Member's Preferred Annual Return Deficit; (ii) Second, to the Class B Members, pro rata based on their respective Percentage Interests, in an amount up

		each Class B Member's accrued Preferred Annual Return as of the distribution date, but only for that portion of the applicable Fiscal Year that such Member's Unreturned Capital Contribution is greater than zero; (iii) Thereafter, to the Class B Members, pro rata based on their respective Percentage Interests.	to each Class B Member's accrued Preferred Annual Return as of the distribution date, but only for that portion of the applicable Fiscal Year that such Member's Unreturned Capital Contribution is greater than zero; (iii) Third, to each Class B Member, pro rata based on their respective Percentage Interests, in an amount equal to any remaining Unreturned Capital Contribution due to each Class B Member; (iv) Fourth, to the Class B Members pro rata based on their respective Percentage Interests.
Class C Interest	[To be determined.]	[To be determined.]	
Class D Interest	[To be determined.]	[To be determined.]	